Labor Law No. 8 of 1996

Article 1 Naming and entry into force (Effective date: 14/06/1996)
This Law shall be cited as (Labor Law of 1996) and shall be effective after sixty days from being published in the Official Gazette.

Article 2 (Effective date: 16/05/2019)
The following terms and phrases wherever stated in this Law shall have the meaning assigned thereto hereunder unless the context indicates otherwise:
Ministry: Ministry of Labor.
Minister: Minister of Labor.
Secretary-general: Secretary-general of the Ministry.
Employer: Every natural person or legal body that employs, in any capacity whatsoever, one or more individuals against wages.
Employers' Association: The entity which represents the employers.
Worker: Any person, male or female, who performs a work against a wage and is a subordinate of the employer and at the employer's service. This covers the juveniles and those under probation or rehabilitation.
Work: Any mental or physical effort exerted by the worker against wages whether on permanent, casual, temporary, or seasonal basis.
Casual Work: A work required by contingent necessities, the completion of which does not extend beyond three months.
Temporary Work: A work of a nature, where completion requires a limited period.

Seasonal Work: Work performed in certain seasons every year, for a period not exceeding six months.
Collective employment contract: A written agreement setting out the terms and conditions of work between the employer or employers' association, on the one hand, and the group of workers or their association/union, on the other.
Work Contract: An explicit or implicit, verbal or written agreement by which the worker undertakes to work for the employer under employer's supervision and management in return for a wage. The work contract can be for a limited or unlimited period, for specific or non-specific work.
Wage: All cash or in-kind entitlements of the worker(s) in return for their work in addition to all other entitlements of whatever type, provided for by the law, work contract or internal regulation or; which it has become customary to pay except for the wages payable for overtime work.
Juvenile: Any person, male or female, who has reached the age of seven but has not yet reached the age of eighteen.

Institution: The physical entity that provides services or operates in the production or distribution of goods.

Medical authority: The medical practitioner or the medical committee approved by the Minister.

Occupational Disease: Contracting any of the industrial diseases listed in Table No. (1) or any of the occupational injuries listed in Table No. (2) annexed to this Law.

Work Injury: An injury of the worker because of an accident while performing work or as a result of the work itself. Any accident that occurs to the worker(s)while on their way to or return from work is considered as a work injury.

The Beneficiary: The persons or members of the worker's family who are entitled to benefits and are specified in the applicable Social Security Law

The Union: A professional labor organization established in accordance with the provisions of this Law.

Administrative body: The administrative body of the Union.

Collective Labor Dispute: Any dispute arising between the Union on the one hand and an employer or employers' association on the other hand concerning the application or interpretation of a collective employment contract or concerning the circumstances and the conditions of work.

Tripartite Committee: The Tripartite Committee for Labor Affairs formed in accordance with the provisions of Article (43) of this Law.

Flexible work: Any mental or physical effort exerted by a worker in return for a wage under one of the forms of a Flexible Contract specified in accordance with a Regulation issued for this purpose.

Wage discrimination: Unequal pay for workers of work of equal value, without any gender-based discrimination.

Part-time work: Work in which the nature of its fulfilment requires working hours not reaching the number of working hours specified in article (56) of this Law.

Article 3 Excluded from the law (Effective date: 17/08/2008)

a- Taking into account the provisions of Paragraph (b) of this article, the provisions of this Law apply to all workers and employers with the exception of public servants and municipal workers.

b- The provisions to which agricultural workers, domestic workers, chefs, gardeners, and the like are subjected to shall be determined under a regulation issued for this purpose, provided that this regulation shall regulate their work contracts, working hours and breaks, inspection, and any other matters related to their employment.

Article 4 The acquired rights of the worker (Effective date: 14/06/1996)

a- The provisions of this Law shall not affect any right granted to the worker by any other law, work contract, agreement or decision if any of them provides better rights than the stipulated rights for the worker by virtue of the provisions of this Law.

b- Any condition in a contract or agreement, whether concluded before or after this Law takes effect, by virtue of which any worker waives any of the rights given to the worker by this Law shall be deemed as invalid.

Article 5 Inspection duties (Effective date: 14/06/1996)

The Ministry shall undertake the inspection duties in implementation of the provisions of this Law.

Article 6 Duties of the labor inspector (Effective date: 14/06/1996)

Anyone undertaking the inspection duties shall sign an affidavit to perform their work honestly and faithfully and not to disclose secrets that they have become aware of because of their work.

Article 7 Inspection regulations (Effective date: 14/06/1996)

The qualifications, duties, authorities and remunerations of the labor inspectors in addition to the obligations of the employers towards them shall be specified in regulations issued to this purpose.

Article 8 The employer (Effective date: 14/06/1996)

Employers or their representatives shall:

a- Send a notice to the Ministry or any of its directorates in the work area in the first month of each year, which includes the number of workers they have, their work locations, the nature of their work, the date of commencing work, and worker's wage.

b- Keep the records that should be retailed by employer in their institution, including records of workers and trainees among workers.

Article 9 Tasks of the Labor inspector (Effective date: 14/06/1996)

a- Labor inspectors, while performing their job, are empowered to exercise the authorities accorded to members of the judicial police under the applicable Criminal Procedure Law. The notice of violation that they issue in the course of their duties shall remain valid until proven otherwise.

b- The inspector may request from the employer to remove the violation within a period not exceeding seven days from the date of receiving a written notice of such. In the event of the employer's default, the Minister or an authorized representative may decide to close the institution until the violation is waived, or a court decision is issued in this regard.

c- The court shall order the contravener to remove the violation and pay a fine of not less

than fifty JDs and not more than five hundred JDs. The fine shall not be reduced below its minimum limit for any discretionary mitigation grounds.

Article 10 Regulating the labor market (Effective date: 15/06/2023)

a- The Ministry, in coordination and cooperation with the relevant authorities, shall undertake the tasks of regulating the labor market, vocational guidance, and providing job and employment opportunities for Jordanians inside and outside the Kingdom. To this end, The Ministry may establish offices to employ Jordanians or contract with any party inside or outside the Kingdom in accordance with a regulation issued for this purpose, or license the following:

1. Companies specializing in a specific activity employing Jordanian workers and subcontracting employers to provide them with these workers.

2. Companies whose purpose is to mediate in employing Jordanians inside the Kingdom and abroad.

b- Taking into account the provisions of any other legislation, the Minister may license the establishment of special offices for regulating the employment and recruitment of non-Jordanian workers in the following sectors:

1- The sector of domestic workers, house gardeners, house cooks and workers of similar occupations.

2- Any other sector approved by the Council of Ministers in a manner that does not conflict with the objectives of the Ministry and its policy on providing job opportunities and employing Jordanians.

c- It regulates all matters related to the employment and recruitment of workers stipulated in paragraphs (a) and (b) of this Article, including determining the terms, conditions, procedures and fees for licensing companies and offices, licenses renewal, cases of cancellation, and how to manage them, and the Ministry supervises these companies and offices and determines the fees for their services in accordance with regulations issued for this purpose.

d- The Minister may allow associations, employers' associations, professional unions, universities, municipalities, chambers of industry and commerce, and any other public bodies to mediate in employing Jordanians, provided that they do not receive any compensation thereof.

Article 11 (Effective date: 15/06/2023)

a- Taking into account the provisions of Paragraph (d) of Article (10) of this Law, it is not permissible except for the employment directorates of the Ministry, the offices, agencies and companies stipulated in paragraphs (a) and (a) thereof to employ, facilitate the employment of, or mediate in the employment of workers inside and outside the

Kingdom. The Minister may close the entity that violates the provisions of this article and refer thereof to court.

b- Anyone who violates the provisions of paragraph (a) of this article shall be punished by a fine of not less than (3,000) JDs and not more than (5,000) JDs, or by imprisonment for a period of not less than thirty days and not more than six months, or by both of these penalties and the closure of any entity used for such purpose. The penalties imposed are combined if there are multiple violations.

Article 12 (Effective date: 15/06/2023)

a- It is not permissible to recruit or employ non-Jordanian worker except with the approval of the Minister or whom the Minister authorizes, provided that the work shall require experience and competence not available among Jordanian workers, or that the number of qualified Jordanian workers does not meet the demand. The Minister shall issue the necessary instructions for this purpose, provided that they shall include the occupations that non-Jordanian workers are prohibited from working in, the percentages according to which employers are permitted to employ, and the guarantees they must provide.

b- Non-Jordanian workers shall obtain a work permit from the Minister or from whom the Minister authorizes prior to their recruitment or employment, and the duration of the permit shall not exceed one year, unless the Minister decides that the term shall be two years for sectors or activities that the Minister specifies in a decision the Minister issues for this purpose. Upon renewal, the duration of the work permit shall be calculated from the expiry date of the last work permit the worker obtained.

c- 1. The Ministry shall receive a fee for the work permit that it issues or renews for every non-Jordanian worker, including workers subject to the provisions of paragraph (b) of article (3) of this Law. This fee shall be considered as a revenue to the treasury.

2. The Ministry shall receive an amount for each work permit it issues or renews in accordance with the provisions of item (1) of this paragraph, which is allocated to the Technical and Vocational Skills Development Commission (TVSDC) established in accordance with the provisions of the Vocational and Technical Skills Development Law. A percentage of (7%) of these amounts will be allocated to raise the efficiency and capacities of the Ministry and its workers and motivate them, and it will be disbursed in accordance with the relevant legislation.

d- The following shall be determined by a special regulation: -

1- The fees and amounts referred to in paragraph (c) of this article.
2- The types of work permits issued by the Ministry and the provisions thereof.
3- The fines imposed on workers and employers who violate the provisions of paragraph (c) of this article.

e- 1- Employers and anyone employing or mediating the employment of a non-Jordanian

worker in a manner that violates the provisions of this Law shall be punished by a fine of not less than double the fees and amounts of the work permit for the sector in which the worker was detected, and the fine shall become four times the fees and amounts of the work permit for the sector in which the worker was detected in the event of repetition.

2- The employer in whose name the work permit was issued and who did not notify the Ministry of the worker's departure of work with that employer prior to the worker being caught working for another employer; shall be punished by the penalty stipulated in item (1) of this paragraph.

3- The penalties imposed shall be combined if there are multiple violations.

f- 1. The children of Jordanian women married to non-Jordanian men residing in the Kingdom shall be exempted from obtaining the work permits stipulated in paragraphs (a) and (b) of this article.

2. The Council of Ministers shall issue the necessary regulations to regulate the work of non-Jordanians residing in the Kingdom.

g- Based on a recommendation from the Ministry of Social Development, the Minister or whom the Minister authorizes may exempt persons with severe disabilities or their guardians or custodians from paying the fees and amounts indicated in paragraph (c) of this article for one non-Jordanian worker if the person with disability is in dire need of assistance from others to carry out the daily life tasks, and if the level of their income or the income of their guardian or custodian entails this exemption, provided that the duties of the non-Jordanian worker shall be limited to providing assistance to the person with disability, and that the conditions of that recommendation and the procedures for its issuance shall be determined in accordance with instructions issued by the Minister of Social Development for this purpose.

h- Employing a non-Jordanian worker in any of the following cases shall be considered a violation of the provisions of this Law:

1- Employing the worker without obtaining a work permit or with a work permit that has expired for over ninety days.

2- Employing the worker for an employer other than the one specified in the permit, unless a permission of this has been obtained from the competent authority in the Ministry.

3- Employing the worker in an occupation other than the one for which the worker is permitted to occupy.

i- 1- The Minister shall issue a decision to deport the non-Jordanian worker outside the Kingdom in any of the following cases:

a. The worker contravening the provisions of this article, including the worker who has been proven by the Ministry to have left work for the employer.

b. The worker who works without obtaining a license or permit in accordance with

applicable legislation.

2- The deportation decision shall be implemented by the relevant authorities at the expense of the contravener whose worker was detected, and the deported non-Jordanian worker may not be re-employed before at least five years from the date of implementing the deportation decision.

3- If the contravener does not pay the travel expenses stipulated in item (2) of this paragraph, they will be collected from contravener in accordance with the provisions of the Public Funds Collection Law.

Article 13 (Effective date: 16/05/2019)

The employer shall employ the percentage of workers with disabilities specified in the Law on the Rights of Persons with Disabilities in force, in accordance with the conditions contained therein, and shall send a statement to the Ministry specifying the jobs occupied by persons with disabilities and the wages of each of them.

Article 14 Use of incapacitated workers (Effective date: 14/06/1996)

If the worker's injury because of work results in partial permanent disability that does not prevent the worker from performing a work other than their previous work, then the employer should employ that worker in another work that suits worker's condition if such work was available and against the wage specified for such work; provided that the worker's financial rights for the period preceding worker's injury are calculated on the basis of their last wage prior to the injury.

Article 15 (Effective date: 16/05/2019)

a- 1- The work contract shall be executed in Arabic and in duplicate at least, and each party shall retain a copy. Workers may prove their rights through all the legal substantiation means if the contract is not drafted in writing.

2- If the worker does not hold an Arab nationality, another copy of the contract shall be prepared in an approved foreign language in accordance with instructions issued by the Minister for this purpose.

b- The worker appointed for an unlimited period shall continue to have their work until their service is terminated in accordance with the provisions of this Law. However, in cases where the worker is appointed for a limited period, the worker shall continue to have their work during that period.

c- If the work contract is for a limited period, then it shall be terminated automatically by the expiry of its term. If both parties continue to implement it after the expiry of its term, this shall be considered a renewal for an unlimited period from the beginning of employment.

d- A regular piece-rate worker in the workplace or a worker who performs a series of piece-works shall be considered hired for an unlimited period.

e- 1. The contractor's workers working on the implementation of a project, have the right to file a lawsuit directly against the project owner to claim what is due to them before the contractor, within the limits of what the contractor is entitled to from the project owner at the time of filing the lawsuit.

2. The subcontractor workers have the right to file a lawsuit directly against both the main contractor and the project owner within the limits of what is due from the project owner to the main contractor and what is due from the main contractor to the subcontractor at the time of filing the lawsuit.

3. The workers mentioned in the preceding two paragraphs may fulfil their rights by lien over the due amounts for the principal contractor or for the subcontractor and may fulfil their due rights in case of their overlapping with the percentage of their respective rights.

Article 16 The impact of changing the employer (Effective date: 14/06/1996)

The employment contract remains effective regardless of the change of the employer due to selling the project, transfer by inheritance, the merger of the institution, or for any other reason. Both the original and new employers shall be considered jointly liable for a period of six months for fulfilling the obligations arising from the employment contract that were due before the date of the change; while after the expiry of that period, the new employer assumes the responsibility alone.

Article 17 Obligating the worker to a different work (Effective date: 14/06/1996)

The worker is not obligated to perform work that differs significantly from the nature of the work agreed upon in the employment contract, unless the necessity so requires to prevent an accident or to repair what resulted from such accident, or in the event of force majeure and in other cases stipulated by the law, provided that this shall be within the worker's capability and within the limits of the circumstances that entailed such work.

Article 18 Workplace Replacement (Effective date: 14/06/1996)

The worker is not obligated to work in a location other than the one designated for their work if that leads to change their place of residence, unless this was explicitly stipulated in the employment contract.

Article 19 Duties of the Worker (Effective date: 14/06/1996)

The worker shall:

a- Perform the work by oneself and shall exert the efforts of an ordinary person to

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perform their work, the worker shall as well comply by employer's orders related to the agreed upon work, within the limits that do not expose the worker to danger , violate applicable laws, or contravene public morals.

b- Keep the confidentiality of the employer's commercial and industrial secrets and not to disclose them in any form even after the expiry of the work contract, in accordance with what the agreement or custom entails.

c- Preserve the objects given to the worker to perform their work such as work tools, materials, and all other work-related necessities.

d- Undergoing the medical examinations as required by the work nature before the commencement of work to check that the worker is free of the occupational or communicable diseases.

Article 20 Intellectual property rights (Effective date: 01/05/2007)

a- The intellectual property rights of both the employer and the worker shall be determined by a written agreement between them regarding the employer's work if the worker uses the employer's expertise, information, tools, or raw materials in the development of such innovation.

b- The intellectual property rights belong to the worker if the innovated intellectual property rights innovated by the worker are not related to the employer's business and the worker did not utilize the employer's expertise, information, tools or raw materials to reach such innovation, unless otherwise agreed upon in writing.

Article 21 (Effective date: 16/05/2019)

The employment contract shall terminate in any of the following cases:

a- If both parties agree on termination.

b- If the term of the employment contract expires or the work itself ends.

c- If the worker passes away, becomes ill or incapacitated for work, , and this is confirmed by a medical report issued by the medical authority.

d- If the worker meets the conditions for old-age retirement stipulated in the Social Security Law, unless both parties agree otherwise.

Article 22 Employer's death (Effective date: 14/06/1996)

The employment contract does shall not be terminated due to employer's death unless the personality of the employer was taken into consideration in the contract.

Article 23 Termination of an unlimited-term employment contract (Effective date: 14/06/1996)

a. If one of the parties intends to terminate the unlimited term employment contract, the other party must be notified in writing of the intention to terminate the contract at least one month in advance; the notice shall not be cancelled except by the approval of both parties.
b. The employment contract shall remain valid throughout the notice's term, and the notice's term shall be counted within the service duration.
c. If the notice is provided by the employer, then the employer may exempt the worker from working during the period of notice, and the employer may bind the worker to work during that period except in the last seven days of such period. the worker shall be entitled to their wage for the period of notice in all such cases.
d. If the notice was provided by the worker, and the worker left the work before the expiry of the notice period, then the worker shall not be entitled for a wage for the period of their leaving the work, and the worker shall compensate the employer for that period by an amount equivalent to corresponding wage.

Article 24 Inadmissibility of dismissing worker for complaints and claims (Effective date: 14/06/1996**)**

Taking into account what is stated in article (31) of this Law, workers shall not be dismissed from work, and no disciplinary action shall be taken against them for reasons related to the complaints and claims submitted by them to the competent authorities in relation to the application of the provisions of this Law.

Article 25 (Effective date: 16/05/2019**)**

If it becomes evident to the competent court, within sixty days from the date of the worker's termination, through a lawsuit filed by the worker, that the termination was arbitrary and in violation of the provisions of this Law, the court may issue an order to the employer to either reinstate the worker to their original position or pay compensation equivalent to half a month's wages for each year of the worker's service, with a minimum limit not less than two monthly wages, in addition to the notice allowance and other entitlements specified in articles (32) and (33) of this Law, provided that compensation is calculated based on the last wage received by the worker.

Article 26 Termination of fixed-term employment contract (Effective date: 14/06/1996)

a- If the employer terminates the fixed-term employment contract before the expiry of its term, or if the worker terminates it for any of the reasons mentioned in article (29) of this Law, the worker shall be entitled to receive all the rights and benefits stipulated in the contract and shall also be entitled to the wages that are due until the expiry of the

remaining contract period, unless the termination of the work contract is a dismissal in accordance with article (28) of this Law.

b- If the worker terminates the fixed-term contract in cases other than those stipulated in article (29) of this Law, the employer shall have the right to claim compensation for damages resulting from that termination, which shall be specified by the competent court, provided that the amount imposed on the worker shall not exceed half a month's wages for each remaining month of the contract's duration.

Article 27 (Effective date: 14/06/1996)

a- Taking into account the provisions of paragraph (b) of this article, the employer shall not terminate the services of a worker or send a notice terminating the worker's service in any of the following cases:

1. Pregnant working women starting from the sixth month of their pregnancy or during maternity leave.
2. Workers charged with the military service or the reserve service during performing that service.
3. Workers during their annual or sick leaves, or the leave granted to them for the purposes of worker learning, Hajj, or during a leave agreed upon between both parties for devoting worker for union work or for joining a recognized institute, college, or university.

b- The employer shall be absolved from the provisions of paragraph (a) of this article if the worker was employed by another employer during any of the periods stipulated in that paragraph.

Article 28 Cases of dismissal of worker without notice (Effective date: 14/06/1996)

The employer may dismiss the worker without notice in any of the following cases:-

a- If the worker impersonates another person or identity, or provides forged certificates or documents with the purpose of gaining benefit or harming others.

b- If the worker does not fulfill the obligations under the employment contract.

c- If the worker commits a mistake resulting in a serious financial loss to the employer, provided that the employer shall notify the competent authority/authorities of the accident within five days from the date in which the employer learned of its occurrence.

d- If the worker violates the internal regulations of the institution, including the conditions for work and worker safety, despite being warned in writing twice.

e- If the worker is absent without a legitimate reason for more than twenty separate days during one year or more than ten consecutive days, provided that the dismissal is preceded by a written warning sent by registered mail to their address and published in

one of the local daily newspapers once.

f- If the worker discloses work secrets.

g- If the worker is found guilty through a legally conclusive judicial verdict of a felony or misdemeanor that contravenes honor and public morals.

h- If the worker is found during work in a state of drunkenness or under the influence of a narcotic or psychotropic substance, or commits an act that violates public morals in the workplace.

i- If the worker assaults the employer, the director in charge, one of their superiors, any worker, or any other person during work or because of work by beating or degradation.

Article 29 Leaving work without notice (Effective date: 15/06/2023)

a- Worker shall have the right to leave work without notifying the employer, provided that that worker notifies the Ministry of Labor within two weeks from the date of leaving work and through channels determined by the Ministry, while retaining their legal rights regarding the end of service and the resulting compensations of damages in any of the following cases:

1. Employing the worker in a job that is significantly different in nature from the agreed upon work in accordance with the employment contract, provided that the provisions of article (17) of this Law are taken into account.
2. Employing the worker in a way that entails changing the worker's permanent place of residence, unless the contract stipulates that this is permissible.
3. Transferring the worker to another work of a lower level than that which has been agreed upon.
4. Reducing the worker's wage, taking into account the provisions of article (14) of this Law.
5. If a medical report issued by a medical authority has proven that worker's continued work would threaten the worker's health.
6. If the employer or employer's representative assaults the worker during work or because of work by beating, humiliation, or any form of sexual assault or sexual harassment, punishable under the provisions of the legislation in force.
7. If the employer fails to implement any provision of this Law or any regulation issued pursuant to, provided that the employer has received a notice from a competent authority at the Ministry requesting compliance with those provisions.

b- If it becomes evident to the Minister that there has been an assault by the employer or their representative by beating or engaging in any form of sexual assault or sexual harassment against workers employed by employer; the employer or the director of the institution or their representative shall be punished with a fine of not less than two

thousand JDs and not more than five thousand JDs, and the fine shall be doubled in the event of repetition, taking into account the provisions of any other applicable legislation.

c- For the purposes of this article, "sexual harassment" means any physical or verbal act or behavior of a sexual nature or any related threats, which undermine worker's dignity and humiliate the worker and lead to physical, psychological, or sexual harm.

Article 30 Certificate of service (Effective date: 15/06/2023)

a- Upon the request of the worker, the employer should give the worker upon the end of worker's service a certificate of service stating the name of the worker, kind of work, date of joining work, and date of the end of service. The employer should also return any documents, certificates, or tools pertaining to the worker.

b- The certificate of service shall be authenticated by the Ministry in accordance with the principles issued by the Minister for this purpose.

Article 31 (Effective date: 16/05/2019)

a- If the economic or technical circumstances of the employer require reducing the size of work, replacing a production system with another, or completely stopping work, which may result in terminating unlimited-term employment contracts or suspending all or some of such contracts, the employer shall notify the Minister in writing, supported with the justifying reasons, before taking any action in this regard.

b- The Minister shall form a tripartite committee to verify the validity of the procedures taken by the employer and submit its recommendations thereon to the Minister within a period not exceeding fifteen days from the date of notification submission.

c- The Minister shall issue a decision regarding the recommendation within seven days from the date of its submission, whether by approving or by reconsidering the procedures of the employer.

d- Any aggrieved party because of the Minister's decision issued pursuant to paragraph (c) of this article may appeal the decision within ten days from the date in which the aggrieved party was notified of this decision at the competent court of appeal, which shall hear the appeal and issue its decision thereon within a maximum period of one month from the date of registering the appeal in the court's registry.

e- Workers whose services have been terminated in accordance with paragraphs (a, b) of this article may be reinstated within one year from the date of their leaving work, if work returns to its previous state and their re-employment with the employer was possible.

f- The worker whose employment contract was suspended in accordance with paragraph

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(a) of this article may leave work without notice while retaining worker's legal rights upon the end of service.

Article 32 (Effective date: 16/05/2019)

An worker who is not subject to the provisions of the Social Security Law and whose service ends for any reason is entitled to receive an end of service remuneration at the rate of one month's wage for each year of their actual service. For the parts of year, a worker shall be given a proportional remuneration. The remuneration shall be calculated on the basis of the last wage he/she received during the period of employment. However, if all or part of the wage is calculated on the basis of commission or task work, then the remuneration shall be calculated based on the average of the monthly wage received by the worker during the twelve months preceding the end of their service. If the period of their service does not reach that extent, then the monthly average of their total service period shall be considered. The intermissions that occur between one job and another and not exceeding sixty days shall be considered as uninterrupted employment period when calculating the remuneration.

Article 33 Systems of provident, savings or pension funds (Effective date: 01/07/2007)

a- In addition to the end-of-service remuneration, the worker who is subject to special regulations of the institution in which he/she works related to provident, savings, or pension funds or any other similar fund shall have the right to obtain all the entitlements granted to him/her under these regulations in the event of service termination.

b- The regulations for the funds stipulated in paragraph (a) of this article shall be approved by the Minister.

c- The regulations of any of the funds stipulated in paragraph (a) of this article may stipulate that its funds be invested wholly or partially in the stocks or shares of the company in which that fund was established.

d- The funds stipulated in paragraph (a) of this article shall have an independent legal personality, and the regulations of any of them shall include matters related to the management of the fund, including the following:

1. To have general authority of the Fund consisting of all workers who are members in the Fund, convening at least once annually to approve the Fund's accounts and discuss administrative and financial matters, and to elect members to the Fund's Management Committee from its members.
2. To manage the assets and investments of the fund by the elected committee stipulated in item (1) of this paragraph.

Article 34 Rights of the deceased worker (Effective date: 16/05/2004)

If the worker passed away, all of their rights stipulated under the provisions of this Law shall be transferred to their legal inheritors, in addition to their rights to any of the funds stipulated in Article (33) of this Law.

Article 35 Employing a worker on probation (Effective date: 14/06/1996)

a- The employer may employ any worker on probation in order to verify their competence and capabilities to do the required work, provided that the duration of the probation in any case does not exceed three months and that the wage of the worker on probation is not less than the minimum wage stipulated.

b- The employer shall have the right to terminate the employment of a probationary worker without notice or remuneration during the probation period.

c- If the worker continues working after the expiry of the probation period, the contract shall be considered an unlimited employment contract, and the probation period shall be calculated within the period of service.

Article 36 Drafting a training contract (Effective date: 14/06/1996)

a- The vocational training contract shall be in writing between the worker and the employer, and the trainer shall have the required qualifications and expertise in the occupation or craft in which the worker is to be trained. The institution itself shall meet the conditions suitable for training.

b- The training contract shall be drafted in accordance with the form and conditions determined by the Vocational Training Corporation in accordance with instructions issued for this purpose and published in the Official Gazette. The contract shall be exempt from stamp fees.

c- The trainee who has reached the age of eighteen shall enter into the contract himself/herself, whereas if he/she is a juvenile, their guardian or custodian shall act on their behalf.

Article 37 Duration of the training contract (Effective date: 14/06/1996)

The duration of the training contract, its successive stages, and the wages due to the trainee at each stage shall be specified in the training contract. The wage in the last stage shall not be less than the minimum wage given for similar work and shall not be determined in any way on the basis of task or production. Training shall be organized according to the programs determined by the Vocational Training Corporation with instructions issued for this purpose and published in the Official Gazette.

Article 38 Termination of the training contract (Effective date: 14/06/1996)

The training contract may be terminated upon the request of any of the parties in any of the following cases:

a- If one of the parties commits any violation of the provisions of this Law or the regulations issued pursuant thereto.
b- If one of the parties does not perform their duties in accordance with the terms of the concluded contract.
c- If implementing the terms of the contract is impracticable for reasons beyond the control of either party.
d- If the employer relocates the training venue stipulated in the contract to an alternative location, causing inconvenience or detriment to the trainee's interest, and the trainee shall be precluded from invoking this reason if more than one month has elapsed since their transfer to the new training location.
e- If the trainee's ongoing work poses a threat to their safety or health, substantiated by a report from a labor inspector or a medical report issued by a duly authorized medical committee.

Article 39 (Effective date: 16/05/2019)

a- The collective work contract shall be executed in at least three original copies, and each party shall keep a copy thereof. The third copy shall be kept at the Ministry for registration in a special register. The collective work contract shall be binding from the date specified in the contract; and if the date is not specified, from the date of its registration at the Ministry.
b- The Minister shall issue instructions related to registering and joining collective work contracts and any regulatory matters related thereto, provided that these contracts are published in the Official Gazette and announced on a special board in the workplace.

Article 40 (Effective date: 16/05/2019)

a- The collective work contract shall be for a definite or indefinite period. If it is concluded for a definite period, it may not exceed a maximum of three years. If it is concluded for an indefinite period and at least two years have elapsed since its execution, then the parties to the contract shall have the right to the following:
    1. Request termination of the contract by a notification to the other party at least one month before the date specified for termination.
    2. Request to amend the contract, in whole or in part, by a notification to the other party, provided that this amendment is made within one month from the date of notification.
b- The sender of the notification shall notify the Ministry by sending a copy thereof immediately upon sending the notification.

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Article 41 Termination of the collective work contract (Effective date: 14/06/1996)

a- If the collective work contract terminates by the expiry of its term or by its termination by one of the parties in accordance with the provisions of Article (40) of this Law and there were negotiations to renew it, extend its term or amend it, then the contract shall remain in effect throughout the negotiations for a period not exceeding six months. If the negotiations have not ended in an agreement during that period, the contract shall be considered terminated.

b- The termination of a collective work contract shall not grant the employer the right to violate in any way the rights acquired by the workers who were covered by the contract.

Article 42 (Effective date: 16/05/2019)

a- The collective work contract shall include the following:
   1. Identifying the employers and the categories of workers benefiting therefrom.
   2. Matters agreed upon between its parties, including the terms and conditions of work and the organization of work relations.
   3. The contract's commencement and termination dates if it is of a definite period.
   4. Modification procedures.
   5. Ensuring oversight of its implementation by forming a committee comprised of representatives from both contracting parties, with an equal number of members representing employers and workers, and the committee shall possess the authority to resolve disputes that may arise during its implementation.

b- The collective work contract shall be binding to the following:
   1. Employers covered in its provisions and their legal successors, including inheritors and persons to whom the institution has been transferred in any manner.
   2. Workers covered in its provisions.
   3. Workers of any institution that is subject to the provisions of the collective work contract, even if they are not members of any association.
   4. Workers of any institution that is subject to the provisions of the collective work contract and who are engaged in individual work contracts with that institution, and the conditions of their contracts were of less advantage than those contained in the collective contract.

c- Any condition violating the collective work contract contained in any individual contract concluded between individuals engaged in the collective contract shall be invalid unless this condition was of more advantage to the workers.

Article 43 Tripartite Committee for Labor Affairs (Effective date: 17/08/2008)

a- A committee shall be formed in the Ministry and shall be cited (the Tripartite Committee for Labor Affairs) headed by the Minister and with an equal number of members

including representatives of the Ministry, the workers and the employers. The provisions and procedures regarding forming the tripartite committee, its work, its tasks, its convening, determining the number of members, their appointment, their remunerations and all other related matters shall be determined in accordance with a regulation issued for this purpose.

b- The Tripartite Committee shall undertake the tasks assigned thereto in this Law and the regulations issued pursuant thereto, in addition to the following advisory tasks:
   1. Advise on matters concerning work terms and conditions.
   2. Examine and evaluate issues related to Arab and international labor standards.
   3. Conduct a study on the alignment of labor policies and legislation with the needs of the socioeconomic development and international labor standards.
   4. Discuss labor disputes.

c- 1- After conducting the appropriate study, the tripartite committee may submit a recommendation to the Minister to expand the scope of any collective work contract that has been implemented for a period of no less than two months, so that all its conditions shall be applicable on employers and workers in a certain sector, or on a category thereof in all areas or in a specific area.

2- The decision issued by the Minister approving the recommendation stipulated in item (1) of this Paragraph shall be published in the Official Gazette.

Article 44 (Effective date: 16/05/2019)

a- Collective negotiation may be conducted between employers and the association regarding any matters related to improving the terms and conditions of work and the productivity of workers, provided that this negotiation takes place at the request of the employer or the association within a period not exceeding (21) days from the date of the written notice sent by the party wishing to conduct the negotiation to the other party, provided that the notice shall include the subject of the negotiation and its reasons, and that a copy shall be sent to the Minister within a period not exceeding (48) hours from the date of issuance.

b- The employer and the association, in an institution that employs twenty-five or more workers, must hold periodic meetings not less than twice a year to organize and improve working conditions and workers' productivity and negotiate any relevant matters.

Article 45 Determining the wages (Effective date: 14/06/1996)

The wage amount shall be specified in the contract. If the wage is not specified in the contract, the worker shall take the estimated wage for work of the same type, if any. Otherwise, the wage shall be estimated in accordance with the custom, otherwise, the court shall estimate it in accordance with the provisions of this Law, considering it as a labor dispute on wages.

Article 46 Eligibility and receipt of wages (Effective date: 15/06/2023)

a- The wage and overtime shall be paid within a period not exceeding seven days from the date of maturity, and the employer shall not deduct any part thereof except in cases permitted by Law.

b- The worker's signature on any register or record of wages or on a receipt of the amount recorded therein does not mean waiving their right to any increment to the amount received by virtue of Law, regulation or contract.

Article 47 Deduction from wages (Effective date: 14/06/1996)

No amount shall be deducted from the wages of the worker except in the following cases: -

a- Recovering advance payments made by the employer to the worker, in a manner that each installment that is refunded of the advance payment shall not exceed 10% of the wage.

b- Refunding any amount paid to the worker that exceeds their entitlement.

c- Social Security subscriptions and its due installments on the worker and the deductions that shall be made under other laws.

d- The worker's subscriptions in the provident fund.

e- Deductions related to the housing facilities provided by the employer and other benefits or services according to the rates or percentages agreed upon between both parties.

f- Every debt received in implementation of a judicial verdict.

g- The amounts imposed on the worker because of violation of the provisions of the institution's internal regulations or the work contract, or for the materials or tools they destroyed due to their negligence or mistakes, in accordance with the special provisions stipulated in this Law.

Article 48 Disciplinary Action (Effective date: 16/05/2004)

The employer shall not take any disciplinary action or impose a fine on the worker for a violation not stipulated in the sanctions list approved by the Minister, provided that the following is taken into account:

a- The worker shall not be imposed a fine exceeding three days' wages per month or suspended from work without pay for a period exceeding three days per month, and they shall be given the opportunity to hear their statements and defend themselves before imposing the penalty on them. The worker shall also have the right to object to the penalty imposed on them to the labor inspector within one week from the date of being notified thereof.

b- No disciplinary action shall be taken and no fine shall be imposed against workers for any violations stipulated in the approved penalties list after fifteen days have passed since

committing thereof.

c- The fines imposed pursuant to this Article shall be documented in a special register that indicates the name of the worker, the amount of wage, and the reasons for imposing the fine, and the fines shall be assigned to providing social services to the workers in the institution in accordance with the decision of the Minister or whom the Minister authorizes.

Article 49 Deduction from wages (Effective date: 14/06/1996)

If it was proven that the worker has caused the loss or damage of tools, machinery or products owned or possessed by the employer or were under the custody of the worker, and this was the fault of the worker or resulted from their violation of the instructions of the employer, the employer may deduct from the worker's wage the value of the lost or damaged items or the cost of repairing thereof, provided that the amount deducted for this purpose does not exceed the wage of five days per month. The employer shall have the right to recourse to the competent regular courts to claim compensation for the damages caused by the worker.

Article 50 Work suspension (Effective date: 14/06/1996)

If the employer is compelled to temporarily suspend work due to reasons beyond their control and is unable to stop these reasons, the worker shall be entitled to receive wages for a period not exceeding the first ten days of the work suspension during the year, and the worker shall be paid half their wages for any period beyond that, ensuring that the total paid wages for work disruption shall not exceed sixty days in a year.

Article 51 Wage privileges and rights (Effective date: 16/05/2004)

a- 1. The due wages and amounts under the provisions of this Law, for the worker, their inheritors, or any beneficiaries after their death, shall be considered as privileged debts of the first degree, in the legal sense of this word.

2. The worker shall lose their right to the general privilege stipulated in Item (1) of this Paragraph if it was proven to the competent court that the wages and amounts due to them and covered by this privilege are not based on any legal basis.

b- In the event of the liquidation of the institution or the bankruptcy of the employer, the liquidator or bankruptcy attorney shall pay to the worker or their inheritors immediately as soon as he/she has hold of the employer's funds, the equivalent of one month's wages from the amounts due to the worker, before paying any other expenses, including judicial expenses and bankruptcy or liquidation expenses.

Article 52 (Effective date: 16/05/2019)

a- The Council of Ministers, based on the Minister's recommendation, shall form a

committee consisting of an equal number of representatives from the Ministry, the workers, and the employers, and the Council of Ministers shall appoint its chairman among its members.

b- The Tripartite Committee shall be responsible for determining the minimum wage in general or for a region, a specific occupation, or a specific age group, taking into account the cost of living indicators issued by the competent official authorities. The decisions of the Committee shall be published in the Official Gazette.

c- The Tripartite Committee shall render unanimous decisions on the matters specified in Paragraph (b) of this Article, otherwise, it shall refer the matter to the Minister for submission to the Council of Ministers to issue an appropriate decision thereon.

Article 53 (Effective date: 16/05/2019)

The employer shall be punished with a fine of not less than five hundred JDs and not more than one thousand JDs for every case in which he/she pays a worker a wage less than the minimum wage, or for any gender-based wage discrimination for work of equal value. Additionally, the employer shall be liable for compensating the affected worker for the wage disparity, and the penalty shall be doubled in cases of recurrent violations.

Article 54 (Effective date: 16/05/2019)

a- The Minister may appoint in a specific area an authority formed of experts and specialists in labor affairs; and it shall be cited (the Wages Authority), this authority shall consist of one or more persons who shall undertake the following:

1. Hear claims related to wages in that area, including the shortfall in paid wages, illegal deductions from wages, delayed payments, overtime wages, or any wage discrimination for work of equal value, provided that the matter is adjudicated urgently, and the worker shall have the right to file a claim whether during their employment or within six months of leaving work if the termination of the contractual relationship is initiated by the worker.
2. Conduct mediation upon the request of the worker to resolve the dispute between them and the employer, provided that such mediation takes place within a period of six months from the date of termination of the employment. If the employer or their representative fails to attend the mediation session, the Wages Authority shall impose a fine of (50) JDs on them. For this purpose, the Wages Authority shall apply the provisions of the Law of Mediation for the Settlement of Civil Disputes in force to the extent that they do not conflict with the provisions of this Paragraph.

b- The Wages Authority shall not be bound by the rules and procedures followed in the courts, and shall have the same powers granted to regular courts in the following matters:

1- Summoning any person to testify after taking an oath and compelling their attendance

through the relevant security authorities in case of non-compliance.

2- Requesting the parties to the case to submit the documents and evidence it deems necessary to adjudicate the claim.

c- The worker may personally submit a written claim, or the labor association may do so on their behalf. A single claim may also be submitted by a number of workers if they are employed in the same institution and share a common cause for their claim. Each of the disputing parties may appoint a representative before the competent Wages Authority.

The employer is required, within a period not exceeding ten days from the date of receiving the lawsuit documents, to provide the Wages Authority with a detailed response to the claim statement, addressing each incident outlined in the claim. The response should be accompanied by the documents and information that substantiate compliance with the wages claimed by the worker or the assertion of their non-entitlement. Before convening its sessions to hear the claim, the Authority may request either party to furnish any clarifications, documents, or information deemed necessary for the resolution of the dispute.

d- The Wages Authority may, within a period it specifies, request the employer to pay the unlawfully deducted wages, unpaid or due wages, or those delayed beyond the stipulated timeframe to the worker. It may also impose compensation at its discretion, provided that the amount of compensation does not exceed the total of the deducted or unpaid wages for the period in question. It is a prerequisite that the employer is not obligated to pay compensation for missing or delayed wages if the Authority is convinced that the delay resulted from a bona fide error, a dispute over the amount due, the occurrence of an emergency, or the worker's failure to claim or accept the wages.

e- The Wages Authority hear the lawsuit before it in the presence of the two parties or their representatives. The lawsuit shall be dismissed if the claiming worker is absent and shall be heard in the presence of the worker if the defendant employer is absent. The Authority issues its decision against the latter in this case in absentia, and its decision is subject to appeal before the Court of Appeal within ten days from the date of notification if the amount awarded to the worker exceeds one hundred JDs.

f- The decisions of the Wages Authority shall be enforced by the relevant procedural departments as if they were rulings issued by regular courts, provided that the awarded amounts are not subject to installment.

g- The claim submitted by the worker to the Wages Authority, and the decisions of the Authority submitted for execution to the procedural departments, shall be exempt from fees and stamps.

h- Remuneration determined by the Minister shall be granted to the Authority and its workers, taking into consideration the number of cases submitted thereto, adjudicated, with the condition that the Authority performs its duties outside official working hours.

Article 55 Internal regulations (Effective date: 16/05/2004)

Each employer employing ten or more workers shall establish an internal regulation to organize work within their institution. This regulation shall outline working hours, daily and weekly break periods, work violations, penalties and measures taken in their regard, including termination of employment and its procedures, and any other details dictated by the nature of the work. The internal regulation of the institution shall be subject to the approval of the Minister or their authorized representative, and shall become effective from the date of approval.

Article 56 Working hours (Effective date: 16/05/2004)

a- It is not permissible to employ a worker for more than eight hours per day or forty-eight hours per week, except in cases stipulated by this Law. The time allocated for meals and breaks shall not be counted as part of these hours.

b- The maximum limit of weekly working hours and break periods may be distributed in a way that does not exceed a total of eleven hours per day.

Article 57 Mandatory overtime (Effective date: 16/05/2019)

The employer may, in any of the following cases, require a worker to work beyond the daily or weekly working hours, provided that the worker receives the additional compensation stipulated in this Law:

a- Conducting the annual inventory of the institution, preparing balance sheets and accounts, and preparing for sale at reduced prices, provided that the number of days subject to the provisions of this paragraph does not exceed thirty days per year, and that the actual working hours do not exceed ten hours each day.

b- To prevent the loss of goods or any other material that may be damaged, to avoid the risks of technical work, or for the receipt, delivery or transportation of certain materials, provided that the number of days subject to the provisions of this paragraph does not exceed thirty days in one year.

Article 58 Individuals excluded from overtime (Effective date: 16/05/2019)

The provisions of the articles related to working hours stipulated in this Law do not apply to individuals tasked with the general supervision or management of the institution, as well as to workers whose work nature requires travel and movement inside or outside the Kingdom.

Article 59 Overtime and working on public official holidays (**Effective date: 16/05/2004)**

a- It is permissible to engage the worker, with their consent, for more than the daily or weekly working hours, provided that the worker receives a compensation for each overtime hour not less than (125%) of their regular wage.

b- If the worker works on their weekly day off or on religious holidays or official holidays,

they shall receive additional compensation for that day, not less than (150%) of their regular wage for the work performed.

Article 60 The weekend (Effective date: 14/06/1996)

a- Friday of each week shall be the weekly day off for the worker unless the nature of the work dictates otherwise.

b- With the employer's consent, the worker may accumulate their weekly holidays and take them within a period not exceeding one month.

c- The worker's weekly holiday shall be with full pay, except if the worker is employed on a daily or weekly basis. In both cases, the worker shall be entitled to the full wage for the weekly holiday if they have worked six consecutive days before the designated day for the holiday. The worker shall be entitled to a proportionate share of the pay for the days worked during the week if they are three days or more.

Article 61 Annual leave (Effective date: 16/05/2019)

a- Every worker shall be entitled to an annual leave with full pay for a period of fourteen days for each year of service, unless an agreement is reached for a longer period. In such a case, the annual leave duration becomes twenty-one days if the worker has spent five consecutive years in service with the same employer. Official holidays, religious holidays, and weekends shall not be counted as annual leave.

b- If the worker's period of service does not complete a year, they shall be entitled to a leave with pay that is proportionate to the duration worked during that year.

c- It is permissible to defer the worker's annual leave for any year by agreement between the worker and the employer to the immediately following year. The worker's right to the deferred leave shall expire if the year to which it was postponed elapses, and the worker does not request its use during that year. The employer may not refuse the worker's request for taking the leave. In case of refusal and the expiration of two years, the employer shall be penalized with a fine of one hundred JDs, and the employer shall pay the worker a cash substitute for their annual leave.

d- The employer may determine, during the first month of the year, the date of the annual leave for each worker and how it should be taken within the institution, taking into account the work requirements while considering the best interest of the worker.

Article 62 Division of annual leave (Effective date: 16/05/2004)

If the annual leave is not taken all at once, it is not permissible for any portion thereof to be less than two days at any one time.

Article 63 Annual leaves (Effective date: 14/06/1996)

If the worker's service ends for any reason before utilizing their annual leave, they are

entitled to receive payment for the days of leave not taken.

Article 64 Waiving annual leave (Effective date: 14/06/1996)

Any agreement stipulating the worker's waiver of their annual leave or any part thereof shall be considered null and void.

Article 65 Sick leaves (Effective date: 16/05/2019)

A worker shall have the right to sick leave for a duration of fourteen days per year with full pay based on a report from the physician approved by the institution. The duration may be renewed for another fourteen days with full pay if the worker is an inpatient in one of the hospitals, based on a report from the physician approved by the institutions having a workforce of fewer than twenty workers. For institutions with more than twenty workers, a medical committee's approval shall be required for the validation of medical reports.

Article 66 Additional leaves (Effective date: 16/05/2019)

a- A worker shall have the right to a leave of fourteen days per year with full pay in any of the following cases:
   1. If they enroll in a labor training course approved by the Ministry or the General Federation of Trade Unions based on the employer's nomination or the institution's director in coordination with the relevant union.
   2. To perform the Hajj, provided that the worker has worked continuously for at least five years with the employer. This leave shall be granted only once during the worker's service period.

b- The worker shall be entitled to a four-month leave without pay if they enroll in an officially recognized university, institute or college for studies.

c- The worker shall be entitled to paternity leave of three days with full pay.

Article 67 Maternity leave for Childcare (Effective date: 14/06/1996)

A woman working in an institution employing ten or more workers shall have the right to take unpaid leave for a duration not exceeding one year to dedicate herself to raising her children. She shall be entitled to return to her work after the conclusion of this leave, provided that she forfeits this right if she works for pay in any other institution during that period.

Article 68 Spousal leave (Effective date: 14/06/1996)

Both employed spouses shall be entitled to a one-time unpaid leave for a duration not exceeding two years to accompany their spouse if they move to another job located outside the governorate where they work within the Kingdom or to a job located outside the

Kingdom.

Article 69 Restrictions on women's work (Effective date: 15/06/2023)

a- Any gender-based discrimination that may undermine equal opportunities among workers shall be prohibited.

b- The Minister shall issue necessary instructions to protect pregnant and lactating women, people with disabilities, and those working night shifts to create a safe working environment.

Article 70 Maternity leave (Effective date: 14/06/1996)

A working woman shall have the right to obtain full paid maternity leave before and after childbirth, with a total duration of ten weeks, provided that the period of leave after childbirth shall not be less than six weeks, and it is prohibited to employ her before the expiry of that period.

Article 71 Breastfeeding the newborn (Effective date: 14/06/1996)

A working woman, after the end of the maternity leave stipulated in Article (70) of this Law, shall have the right to take, within one year from the date of birth, one or more periods with full pay for the purpose of breastfeeding her newborn, not exceeding a total of one hour per day.

Article 72 Childcare for working mothers (Effective date: 16/05/2019)

a- An employer who employs a group of workers in one location, who have a total of at least fifteen children, aged not more than five years, shall be committed to providing a suitable place under the care of one or more qualified caregivers for their care. Employers may also collaborate in establishing this facility in a specific geographical area.

b- The Minister shall determine appropriate alternatives if it is found that the employer cannot provide a suitable place on the premises or in the vicinity, within instructions issued for this purpose.

Article 73 Prohibition of employing juveniles (Effective date: 14/06/1996)

Taking into consideration the provisions related to vocational training, under no circumstances it is permissible to employ a juvenile who has not reached the age of sixteen in any form.

Article 74 Prohibition of employing juveniles (Effective date: 16/05/2004)

It is not permissible to employ an individual who has not reached the age of eighteen in hazardous, strenuous, or health-damaging work. These types of work shall be defined by

decisions issued by the Minister after consulting with the relevant official authorities.

Article 75 Employing juveniles (Effective date: 14/06/1996)

It is prohibited to employ a juvenile:

a- For more than six hours per day, provided that a rest period of not less than one hour is given after working four consecutive hours.

b- Between 8:00 PM and 6:00 AM.

c- On religious holidays, official holidays, and weekends.

Article 76 Conditions for employing juveniles (Effective date: 14/06/1996)

Before employing any juvenile, the employer shall request from them or their guardian the submission of the following documents:

a- A certified copy of the birth certificate.

b- A health fitness certificate for the required work, issued by a specialized physician and authenticated by the Ministry of Health.

c- A written consent from the juvenile's guardian to work in the institution. These documents shall be kept in a separate file for the juvenile, including sufficient information on their place of residence, date of employment, the nature of the work they were engaged in, their wages, and their leaves.

Article 77 Penalties for violating provisions (Effective date: 17/08/2008)

a- The employer or the manager of the institution shall be punished with a fine of not less than (300) JDs and not exceeding (500) JDs in the event of any violation of the provisions of this chapter, any regulation, or any decision issued accordingly. The court shall not be permitted to reduce the penalty below its minimum or consider discretionary mitigation grounds.

b- In addition to any penalty specified in the legislation in force, the employer shall be punished for any violation committed by employing any worker forcibly, under threat, by deception, or by coercion, including the confiscation of their travel document, with a fine of not less than (500) five hundred JDs and not exceeding (1,000) thousand JDs. The same penalty shall apply to the accomplice, instigator, and any other party involved in such employment.

c- The fines stipulated in Paragraphs (a) and (b) of this Article shall be doubled in the case of recurrence.

Article 78 Employer duties (Effective date: 14/06/1996)

a- The employer shall:

1. Provide the necessary precautions and measures to protect workers from hazards and diseases that may result from work and the machinery used therein.

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2. Provide personal protective equipment and preventive measures for workers against work hazards and occupational diseases, such as clothing, goggles, gloves, shoes, etc., and instruct them on how to use and maintain them.
3. Inform the worker before commencing work about the risks of their occupation, the preventive measures that should be taken, and post visible instructions and guidelines explaining the occupational risks and preventive measures, in accordance with the regulations and decisions issued in this regard.
4. Provide medical first aid equipment for workers in the institution according to the levels determined by a decision of the Minister after consulting the relevant official authorities.

b- Workers shall not be charged with any expenses incurred by the implementation or provision of the requirements mentioned in Paragraph (a) of this Article.

Article 79 General safety instructions (Effective date: 14/06/1996)

The Minister, after consulting the relevant official authorities, shall issue instructions specifying the following:

a- Precautions and measures to be taken or provided in all institutions or any of them to protect workers and institutions from occupational hazards and diseases.

b- Devices and means to be provided in all institutions or any of them to protect workers from occupational hazards and diseases and to prevent them.

c- The principles and standards that must be available in industrial institutions to ensure an environment free from pollution in all its forms and prevention of noise, vibrations and anything harmful to the health of the worker, within the adopted international standards, and defining special inspection and testing methods to control these standards.

Article 80 Protection from hazardous materials (Effective date: 14/06/1996)

The employer shall take the necessary precautions to protect the institution and its workers from the dangers of fire and explosions, including the storage, transportation, or handling of flammable hazardous materials. Adequate technical means and devices shall be provided in accordance with the instructions of the relevant official authorities.

Article 81 Bringing psychotropic substances (Effective date: 14/06/1996)

The employer or worker shall not be allowed to permit the bringing of any type of alcoholic beverages, narcotics, psychotropic substances or hazardous drugs to the workplace, nor to display them in any way. Furthermore, it is not permissible for any person to enter or remain in those places for any reason while under the influence of such beverages or drugs.

Article 82 Adherence to preventive instructions (Effective date: 14/06/1996)

All workers in any institution shall adhere to the provisions, instructions, and decisions regarding preventive measures, occupational safety and health precautions, and the use and maintenance of the relevant equipment. They shall refrain from any action that hinders the implementation of these provisions, decisions, and instructions, and avoid tampering with, harming, or destroying the protective occupational safety and health equipment. Failure to comply may result in disciplinary penalties as stipulated in the internal regulations of the institution.

Article 83 Health protection instructions (Effective date: 14/06/1996)

The Minister, after consulting the relevant authorities, may issue instructions specifying jobs that no person shall be employed at until a medical examination is conducted to ensure their health fitness for performing that job. The instructions issued pursuant to this Article shall be published in two local daily newspapers and in the Official Gazette.

Article 84 Punishment for violation of provisions (Effective date: 14/06/1996)

a- If the employer violates any provision of this chapter, the Minister shall have the authority to close the institution or workplace, either fully or partially, or to suspend any machinery therein if such violation poses a risk to the workers, the institution, or the machinery. This shall remain in effect until the employer rectifies the violation.

b- The Minister shall not issue the decision specified in Paragraph (a) of this Article without first issuing a warning to the employer to rectify the violation within the period specified in the warning. This is in accordance with the gravity and danger of the violation.

c- In the event of closing the institution or workplace or suspending the machinery therein, it shall be ensured not to infringe upon the workers' right to receive their full wages for the duration of the closure or suspension.

d- The Minister shall have the authority to refer the contravener to the competent court. In this case, the contravener shall be penalized with a fine of not less than one hundred JDs and not more than five hundred JDs. The fine shall be doubled in the event of recurrence, and under no circumstances shall the imposed fine be reduced below its minimum.

Article 85 Safety-related regulations (Effective date: 14/06/1996)

The Council of Ministers shall issue, based on the Minister's recommendation, the necessary regulations in the following matters:

a- Forming occupational safety and health committees, appointing supervisors in public and private institutions, and specifying the jurisdiction of these committees and supervisors, and their duties.

b- Medical, preventive and curative care for workers, and the obligations of employers to provide thereof, in addition to the establishment of joint medical units between multiple institutions, the method of financing them, the technical equipment required in these units, and the periodic medical examinations for workers.

c- Prevention and safety measures concerning industrial machinery, equipment and workplaces.

Article 86 Application of work injuries (Effective date: 14/06/1996)

The provisions of this chapter related to work injuries and occupational diseases shall apply to workers who are not subject to the provisions of the applicable Social Security Law.

Article 87 Reporting injuries (Effective date: 14/06/1996)

a- If a worker sustains a work-related injury resulting in their death or causing them bodily harm that prevents them from continuing to work, the employer shall transport the injured person to a hospital or any medical center and notify the relevant security authorities of the accident. The employer shall also send a notice to the Ministry within a period not exceeding (48) hours from the occurrence of the incident. The employer shall bear the expenses of transporting the injured person to the hospital or medical center for treatment.

b- The employer or the manager of the institution, or their representative, shall be penalized for any violation of the provisions of Paragraph (a) of this Article with a fine of not less than one hundred JDs and not exceeding five hundred JDs for each violation. The penalty shall be doubled in the case of recurrence.

Article 88 Payment of compensation (Effective date: 14/06/1996)

The employer shall be responsible for paying the compensation stipulated in this Law to the worker who contracts an occupational disease resulting from their work, based on a report from the medical authority.

Article 89 Compensation for injury (Effective date: 14/06/1996)

In accordance with the provisions of other applicable laws or legislation, the injured party or their beneficiary shall not be entitled to claim any compensation from the employer other than those stipulated in this Law, except in cases where the injury is a result of the employer's fault.

Article 90 Compensation amount (Effective date: 16/05/2004)

a- If the work injury results in the death or total disability of the worker, the employer shall be liable to pay compensation equivalent to the wages of one thousand and two hundred working days, provided that the compensation does not exceed five thousand JDs and is not less than two thousand JDs.

b- If the work injury results in a temporary disability for the worker, the worker shall be entitled to a daily allowance equivalent to (75%) of their average daily wage, from the day the injury occurred, during the treatment period that is determined based on a report from the medical authority if the treatment is conducted outside the hospital. This

allowance shall be reduced to (65%) of that wage if the injured worker receives treatment at an accredited treatment center.

c- If the work injury results in a permanent partial disability, based on a report from the medical authority, the worker shall receive compensation based on the percentage of that disability to the compensation determined for total disability under Table No. (2) annexed to this Law.

d- If a single work injury results in more than one bodily harm, the injured worker shall be entitled to compensation for each harm in accordance with the principles stipulated in this Law, provided that the total amount payable in this case does not exceed the amount of compensation payable in the case of total disability.

Article 91 Compensation calculation (Effective date: 14/06/1996)

The compensation stipulated in this Law shall be calculated based on the worker's last received wage. If the worker is paid on a task work basis, it is calculated based on the average wage over the last six months of their work.

Article 92 Compensation estimation (Effective date: 14/06/1996)

a- The due compensation in accordance with this Law shall be estimated upon the request of the employer, the worker, or those entitled. In case of failure to reach an agreement on compensation, the Secretary-General shall estimate it being the authorized with compensation estimation, and he/she shall be a litigant in the lawsuits related to compensation. The Minister may appoint other authorized persons from the Ministry officials to exercise the powers of the authorized in any region of the Kingdom. The compensation shall be paid in a lump sum within thirty days from the date of informing the concerned parties with the decision of the authorized person.

b- Payment of the compensation stipulated in this Law shall not hinder the worker or those entitled from receiving end-of-service compensation if the conditions for entitlement are met.

c- No lawsuit related to the compensation stipulated in this Law shall be heard by any court if the claim has been submitted to the commissioner and is still under consideration.

Article 93 limitations for compensation claims (Effective date: 14/06/1996)

A claim for compensation for any work-related injury shall not be accepted unless it is submitted to the authorized person within two years from the date of occurrence or from the date of the death of the injured worker. However, the authorized person may accept the claim after the lapse of two years from the date of the injury or death if the delay in submission is justified by a legitimate excuse, including the final instability of the injury

results.

Article 94 Relinquishment of the right to compensation (Effective date: 14/06/1996)

a- Subject to the provisions of Paragraph (b) of this Article, the right of the injured party to daily allowance and cash compensation shall be forfeited, provided that it is proven by the results of the investigation conducted by the competent authorities after hearing the statements of the employer or their representative and the statements of the injured party when their health permits, in any of the following cases:

1. If the injury resulted from intentional acts, serious error, or gross negligence on the part of the injured party.
2. If the injury resulted from the influence of alcohol, drugs, or psychotropic substances.
3. If the injured party violated the prescribed instructions regarding their injury treatment or the announced industrial prevention and safety instructions that must be followed, and this violation had an effect in the occurrence of the injury.

b- The provisions of Paragraph (a) of this Article shall not apply to any case of injury, including those specified in that Paragraph, if it results in the death of the injured party or if they suffered a permanent disability of not less than (30%), and in such cases, the injured party or those entitled shall receive a daily allowance or cash compensation as appropriate.

Article 95 Seizure of compensation (Effective date: 14/06/1996)

It is not permissible, under any circumstances, to mortgage or seize the compensation payable under the provisions of this Law, except for maintenance debts, and not exceeding one-third of the compensation amount. It is also not permissible to transfer thereof to any person other than the worker or their beneficiaries, nor to claim setoff of the due compensation after the death of the worker.

Article 96 Compensation distribution (Effective date: 14/06/1996)

Taking into consideration the provisions of Article (95) of this Law, compensation shall be distributed among those entitled in the event of the death of the worker according to the specified percentages in Table No. (3) annexed to this Law.

Article 97 Affiliation with the association (Effective date: 16/05/2004)

a- Workers in any occupation shall have the right to establish their own association in accordance with the provisions of this Law. Workers in that occupation shall have the right to join the association if they meet the membership conditions.

b- Employers shall be prohibited from making the employment of any worker contingent upon not joining a trade union, waiving their membership, or working on their separation from any union, and depriving them of any right related to their affiliation or contribution to its activities outside working hours.

c- Trade unions and employers associations are prohibited from engaging in any activities that involve interference, directly or indirectly, in the affairs of the other, concerning their formation, management, or how they conduct their activities.

Article 98 (Effective date: 16/05/2019)

a- The association shall be established by a number of workers not less than fifty in a single industry or economic activity, or in similar or interrelated industries and economic activities in a single production.

b- Employers in any industry or economic activity, whose number is not less than twenty-five individuals, shall have the right to establish an association to protect their interests related to the provisions of this Law.

c- The establishment of any association for workers or employers shall not be aimed at or have objectives involving activities based on racial, religious or sectarian grounds. It is also prohibited for the association to engage in any of these activities after its establishment.

d- The Minister, through the Registrar of Associations, may classify industries and economic activities in which trade associations may be established in accordance with the provisions of Paragraphs (a) and (b) of this Article, ensuring that no more than one association represents any industry or economic activity, taking into consideration both Arab and international classifications.

e- The founder of any association or employers association shall meet the following conditions:

1. Be a Jordanian citizen.
2. Be at least (18) years old.
3. Not be convicted of a felony or misdemeanor involving dishonor or dishonesty.

f- An worker affiliated with any association must be at least 18 years old.

g- If the founder or member of any employers association is a legal person, they must be registered in the Kingdom in accordance with the provisions of the legislation in force.

Article 99 (Effective date: 16/05/2019)

The association carries out its activities to achieve the following objectives:

a- Safeguarding the interests of workers in the occupation and defending their rights at work.

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b- Improving work relations, conditions and terms, including conducting collective negotiations and concluding collective agreements.
c- Contributing to the prevention of collective and individual disputes and seeking to resolve them.
d- Representing workers in institutions related to labor, economic and social affairs in accordance with applicable legislation.
e- Raising the level of economic, social, professional and cultural awareness of workers and enhancing their participation in decision-making related thereto.
f- Providing health and social services to its members and any facilities to meet their consumer needs.

Article 100 (Effective date: 16/05/2019)

The General Federation of Trade Unions shall establish internal regulations for the associations that shall not conflict with the provisions of applicable laws. These regulations shall be approved by the Registrar of Associations and Employers' Associations immediately after they are enacted; and they shall include the following matters:

a- The name and main headquarters address of the association.
b- The purposes for which the association is established.
c- Conditions and procedures for members' affiliation with the association, their dismissal, and the necessary conditions for a candidate in the elections of the administrative body or any of its committees.
d- Conditions for forming committees in the association and their tasks.
e- The number of members in the association's administrative body, the duration of their term, the method of their election, meeting schedules, the procedure for filling vacancies in membership and their powers.
f- The rights enjoyed by an association member, the obligations that they bear, and the cases in which they may face disciplinary penalties, including fines and expulsion from the association.
g- Financial services and assistance provided to the association members in cases of necessity, including contributions to treatment expenses and the appointment of lawyers.
h- Conditions for appointing workers and staff in the association, the procedures of appointment, and termination of their services.
i- Methods for preserving the association's funds and maintaining its financial records and registers.
j- Procedures for inviting the general assembly of the association to its regular and extraordinary meetings.

Article 101 Reconciling the status of associations (Effective date: 01/04/1999)

a- Registered trade associations existing before the enactment of this Law shall be considered valid as if they were registered pursuant thereto.
b- Registered employers' associations existing before the enactment of this Law shall be considered as if they were registered pursuant thereto.
c- The aforementioned trade associations and employers' associations shall reconcile their status and regulations with the provisions of this Law within a period not exceeding six months from its effective date.

Article 102 (Effective date: 16/05/2019)

a- Any association or employers' associations shall submit a registration application, signed by the founders, to the Registrar of Trade Associations and Employers' Associations at the Ministry, accompanied by the following:
   1. Its internal regulations, including its name, main headquarters, and address.
   2. A list of the names of the founding members and their identification documents.
   3. The names of the members of the first administrative body elected by the founders.
   4. Minutes of the founding committee meeting.
b- The Registrar of Trade Associations and Employers' Associations may commission the administrative body to provide the Registrar with any additional documents the Registrar deems necessary to complete the registration.
c- The Registrar of Trade Associations and Employers' Associations shall issue his/her decision regarding the application for registration of any trade association or employers' association within a period not exceeding thirty days from the date the application is submitted to him/her. If the Registrar approves the application, the Registrar shall issue a certificate of registration for the association or employers' association, and the registration decision shall be published in the Official Gazette. If the Registrar decides to disapprove the application, the founders may appeal his/her decision at the Supreme Court of Justice within thirty days from the date of declaring the decision.
d- Individuals who have been adversely affected by the registration of any association or employers' association shall have the right to appeal the registration decision to the Supreme Court of Justice within thirty days from the date of publishing the decision in the Official Gazette.

Article 103 Legal personality (Effective date: 16/05/2019)

a- The legal personality of the association or employers' association is established under the name in which it is registered and acquires legal standing and exercises, in this capacity, all activities it is authorized to practice in accordance with the provisions of this Law and the regulations issued pursuant thereto, and in accordance with its internal regulations as of the date of:

1. Publishing the decision of the Registrar of Trade Associations and Employers' Associations to register the association or employers' association in the Official Gazette.
2. Or the issuance of a decision by the Supreme Court of Justice to annul the registrar's decision rejecting the registration of the association or employers' association.
3. Or the expiration of the appeal period stipulated in Article (102) of this Law.

b- The General Federation of Trade Unions, associations or any of the employers' associations shall approve any amendment to the internal regulations of the Federation, the associations or the employers' associations made by the Registrar of Trade Associations and Employers' Associations, provided that such amendment does not conflict with the provisions of applicable legislation, and it shall take effect from the date of approval.

Article 104 Association address (Effective date: 01/04/1999)

All correspondence and notices to the association or employers' association shall be sent to its registered address. Any change in this address shall be notified to the Registrar of Trade Associations within seven days of its occurrence. The change shall be recorded in the registry of trade associations and employers' associations kept by the Registrar, otherwise the registered address shall be deemed valid.

Article 105 Cancelation of association registration (Effective date: 01/04/1999)

The Registrar shall cancel the registration certificate of the association or employers' association if it was proven to the Registrar that it no longer exists, either by voluntary dissolution or due to dissolution in accordance with the provisions of this Law or by a judicial decision.

Article 106 Voluntary dissolution of the association (Effective date: 01/04/1999)

The association or the employers' association shall be dissolved voluntarily by the approval of two-thirds of its members who have paid their subscriptions in an extraordinary meeting held by the general assembly of the association or the employers' association for this purpose only. In this case, its assets and rights shall be liquidated and disposed of in accordance with the provisions of the internal regulations. The Minister and the General Federation of Trade Unions shall be notified of the dissolution decision within fifteen days from the date of its issuance and it shall be published in the Official Gazette.

Article 107 (Effective date: 16/05/2019)

The tripartite committee shall establish the necessary principles and standards to enable trade association representatives to carry out their tasks, including conditions for reducing

working hours or devoting them full-time to association work and providing the necessary financial resources for this purpose, taking into account the capabilities of the institution and the number of workers therein.

Article 108 (Effective date: 16/05/2019)

a- Under the penalty of nullity, the employer shall not be allowed to take any action against any association representative for engaging in association activities, including termination from employment.

b- In the event that the employer violates the provisions of Paragraph (a) of this Article, the labor inspector shall issue a warning to the employer to rectify the violation within a period not exceeding seven days from the date of the warning. If the violation persists, the labor inspector shall issue an official report and refer the matter to the competent court.

c- The worker shall have the right to claim any damages to his/her rights as a result of any action taken against them in violation of the provisions of Paragraph (a) of this Article. In case of termination from employment, the court shall issue a decision to reinstate the worker and award them full wages for the period of their absence from work until the date of the reinstatement decision. If the worker cannot return to work for reasons related to the employer, they shall be entitled to additional compensation not less than six months' wages and not exceeding twelve months' wages, in addition to compensation for arbitrary dismissal and any other rights accrued to them under the provisions of this Law.

Article 109 (Effective date: 16/05/2019)

a- The funds of the associations, the General Federation of Trade Unions, employers' association, and any funds allocated by the government or any other entity to support them, may not be spent except in a manner that achieves their objectives in accordance with the provisions of the applicable legislation, and their internal regulations, and as per the international accounting standards, provided that these funds and allocations shall be subject to the oversight of the Audit Bureau.

b- Associations must submit their financial statements for the subsequent fiscal year to the General Federation of Trade Unions at least four months before the start of each fiscal year. The General Federation of Trade Unions shall provide the Minister with a copy of these financial statements and its annual budget.

Article 110 (Effective date: 16/05/2019)

a- The trade associations shall form the General Federation of Trade Unions, which shall have a legal personality in which each association shall keep its special rights.

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b- The federation shall consist of the members of the associations that form the federation and shall enjoy all the rights of an association.

c- Two or more associations may, with the approval of the General Federation of Trade Unions, form a professional federation, provided that each of them shall acquire the approval of the majority of its general assembly and shall inform the Registrar of this in writing.

d- The General Federation of Trade Unions and registered professional federations shall have the right to join any Arab or international labor organization with legitimate objectives and means.

e- The affairs of the General Federation of Trade Unions shall be regulated by an internal regulation established for this purpose. Once approved, it shall be authenticated by the Registrar of Trade Associations and shall be effective from the date of its approval.

Article 111 Protection of association members (Effective date: 14/06/1996)

Any worker or member in any trade association shall not be punished, nor shall any legal or judicial measures be taken against them due to an agreement concluded between association members regarding any of the legitimate purposes of the trade associations, provided that the agreement shall not violate applicable laws and regulations.

Article 112 Protection of the Association (Effective date: 14/06/1996)

Any trade association shall not be deemed an unlawful body for the mere claim that any of its purposes are intended to restrict the freedom of trade.

Article 113 (Effective date: 16/05/2019)

Each association, the General Federation of Trade Unions, or an employers' association shall prepare records and registers according to the terms and conditions determined by the tripartite committee.

Article 114 Members of the administrative body (Effective date: 14/06/1996)

No person may be elected as a member of the administrative body of any association unless they are a registered worker or full-time worker at such association, and no person may be elected to the body if a judicial ruling has been rendered against them in a criminal offense or a crime violating honor and public morals.

Article 115 (Effective date: 16/05/2019)

The union shall have the right to establish committees affiliated with it throughout the Kingdom. The internal regulations of the associations shall determine the provisions and

procedures related to their formation, as well as the relationship between the association and these committees.

Article 116 (Effective date: 16/05/2019)

a- If the administrative body of any association or employers' association commits a violation of the provisions of this Law and the regulations issued pursuant thereto, or if the internal regulations of any of them contain a violation of the applicable laws, the Minister shall issue a written warning instructing them to rectify the violation within a period not exceeding (30) days from the date of notification.

b- In case the violation persists, the Minister may, based on the recommendation of the Registrar of Trade Associations, issue a decision to dissolve the administrative body, and the decision shall be subject to appeal before the Administrative Court within thirty days from the date of notification.

c- The Minister, in consultation with the General Federation of Trade Unions regarding associations, shall appoint a temporary administrative body to manage the association's affairs and hold elections for a new administrative body within a maximum period of (6) months from the date of dissolution.

Article 117 Association funds after dissolution (Effective date: 14/06/1996)

If the association was dissolved involuntarily for any reason, its funds shall be deposited at the bank designated by the General Federation of Trade Unions until a new association is established for the same occupation/occupations. If such association was not established within one year from dissolving the initial association, then its movable and immovable assets shall be transferred to the General Federation of Trade Unions.

Article 118 (Effective date: 15/07/2010)

The association or employers' association shall prepare final financial statements within the four months following the end of the fiscal year, provided that these statements are audited by a legal accountant elected by its general assembly. The Ministry shall be provided with a copy of the accountant's report and the final financial statements immediately after their approval by its general assembly.

Article 119 (Effective date: 16/05/2019)

a- Anyone who continues trade association activities under the name of the association, employers' association, or administrative body of either, which has been dissolved, shall be punished by imprisonment for a period not exceeding three months and a fine of not less than five hundred JDs and not exceeding one thousand JDs, or by one of these two

penalties.

b- Anyone who intentionally provides false information in the balance sheet of the association, participates therein, or engages in any forgery in the association's regulations or in any amendment thereto, or participates therein, or omits to include any text therein, shall be punished with a fine of not less than five hundred JDs and not more than one thousand JDs, or by imprisonment for a period of not less than three months and not more than one year, and the penalty shall be doubled in proportion to its maximum limit in the event of recurrence.

Article 120 Settlement representative (Effective date: 14/06/1996)

The Minister may appoint one or more conciliation representatives of the Ministry workers to undertake the task of mediation in settling collective labor disputes for the area he/she specifies and for the period he deems appropriate.

Article 121 Conciliation Council (Effective date: 01/04/1999)

a- If a collective labor dispute occurs, the settlement representative shall initiate mediation procedures between the two parties to settle that dispute. If it is agreed upon in a collective contract or otherwise, the settlement representative shall keep a copy thereof approved by the two parties.

b- If conducting negotiations between the two parties was impracticable for any reason, or it was ascertained that resuming negotiations will not result in settling the dispute, the settlement representative shall submit a report to the Minister including the reasons for the dispute, the negotiations that took place between the two parties, and the result he/she reached, within a period not exceeding twenty-one days from the date the dispute was referred to him.

c- If the Minister in turn could not settle the dispute, the Minister shall refer thereof to a conciliation council that the Minister shall form as follows:

1. A president appointed by the Minister, provided that he shall not have any relation to the dispute, trade associations, or employers' associations.
2. Two or more members representing both employers and workers with equal numbers. Each of the two parties shall appoint their representatives in the council.

Article 122 Tasks of the Settlement Council (Effective date: 14/06/1996)

a- If a labor dispute was referred to the settlement council, it shall exert its efforts to settle the dispute in the manner it deems appropriate. If the council reaches a full or partial settlement, it shall submit to the Minister a report thereon, enclosing the settlement signed between the two parties.

b- If the settlement council did not reach a settlement for the dispute, it shall submit to the Minister a report that includes the causes of the dispute, the measures taken to settle thereof, the reasons that prevented the settlement, and the recommendations it deems appropriate in this regard.

c- In all cases, the council shall conclude the settlement procedures and submit its report on the findings it has reached within a period not exceeding twenty-one days from the date the dispute was referred thereto.

Article 123 Authorization in disputes (Effective date: 14/06/1996)

Neither party in a labor dispute may appoint attorneys before the settlement representative or council.

Article 124 Labor Court (Effective date: 14/06/1996)

a- If the settlement council could not settle the collective labor dispute, the Minister shall refer it to a labor court composed of three regular judges appointed by the Judicial Council for this purpose upon the Minister's request and headed by the judge highest in degree. It may be held in the presence of two of its members, and in the event of a disagreement, the third judge shall be invited to participate in examining the case and issuing a decision thereon.

b- The labor dispute referred to the labor court shall be given urgent status, as hearing it shall start within a period not exceeding seven days from the date of referral, provided that the court shall issue its decision in the dispute and inform the Minister within thirty days from that date. This decision shall be final and not subject to appeal before any judicial or administrative body.

c- The labor court shall consider the labor dispute before it and decide upon it according to the procedures it deems appropriate to achieve justice between the two parties, taking into account any special procedures stipulated in this Law. Each party may appoint one or more attorneys before the court.

Article 125 The jurisdiction of the labor court (Effective date: 14/06/1996)

Upon hearing a labor dispute, the labor court and the settlement council shall have the following powers:

a- Hearing the testimonies of any person and resorting to their expertise in the dispute after taking an oath.

b- Ordering any party to the dispute to present the documents and evidence that they have, that the court or council deems necessary for hearing or deciding in the dispute.

Article 126 Labor court decisions (Effective date: 14/06/1996)

The Labor Court shall interpret any decision it has issued upon the request of the Minister or any party to the dispute to remove any ambiguity without diverting the decision from the results it reached. It also shall have the right at all times to rectify, on its own initiative or upon the request of the Minister or one of the litigants, errors, clerical errors, or calculation errors that occur in rulings and decisions through accidental inattentiveness.

Article 127 Place of court (Effective date: 14/06/1996)

Sessions of the labor court and the settlement council shall be held in the Ministry, and the Ministry shall be responsible for providing the administrative requirements, facilities, and equipment that enable the court to carry out its work.

Article 128 Labor court decisions (Effective date: 14/06/1996)

a- The report of the settlement council and the decision of the labor court shall be in writing and signed by all members of the council or the court as appropriate. The court's decision shall be issued unanimously or by majority, and each dissenting member of the council or court shall document their view in writing in the report or decision.

b- The council's report or the labor court's decision shall be published in one or more local newspapers at the expense of the disputing parties within thirty days from the date the Minister receives the report or decision.

Article 129 Labor court remunerations (Effective date: 14/06/1996)

The president and members of the labor court, the chairman of the settlement council, and the clerk of the court sessions shall be paid the remuneration decided by the Council of Ministers based on the recommendation of the Minister.

Article 130 Argument for settlements and decisions (Effective date: 14/06/1996)

The settlement reached as a result of settlement procedures under the provisions of this Law or the decision of the labor court shall be binding to the following categories:

a- Labor dispute parties.

b- Successors of the employer, including their inheritors to whom the institution to which the dispute relates has been transferred.

c- All persons who were working at the institution to which the dispute relates on the date of its occurrence, or in any department thereof, as appropriate, and all persons who are subsequently employed in that institution or in any department thereof, if the settlement report or the labor court decision stipulates so, and there is nothing in this Law or the regulations issued by its virtue hinders that.

Article 131 Implementing decisions and recommendations (Effective date: 14/06/1996)

a- The decision of the labor court shall be implemented as of the date it specifies.

b- The settlement reached as a result of settlement procedures shall be effective as of the date agreed upon by the parties to the labor dispute. If this is not agreed upon, the settlement shall be effective as of the date of signing the settlement report and shall be binding for all parties thereto and under the conditions stipulated therein.

Article 132 Restrictions on the employer (Effective date: 14/06/1996)

While hearing a labor dispute by a settlement representative, settlement council, or labor court, no employer may do any of the following:

a- Change the applicable terms of employment.

b- Dismiss any worker without obtaining written permission from the settlement representative, the council, or the labor court, as appropriate.

Article 133 Penalties for violators (Effective date: 14/06/1996)

a- If any worker violates any condition of the settlement or the decision of the labor court that is binding for them under this Law, they shall be punished with a fine of not less than fifty JDs and not more than two hundred JDs for the first time, and it shall be doubled in the event of recurrence. The fine may not be reduced below its minimum for discretionary mitigation grounds.

b- If the employer violates any condition of the settlement or the decision of the labor court that is binding for them under this Law, they shall be punished with a fine of not less than two hundred JDs and not more than four hundred JDs for the first time, and it shall be doubled in the event of recurrence. The fine may not be reduced below its minimum for discretionary mitigation grounds.

Article 134 Strikes and closures (Effective date: 14/06/1996)

No worker may strike and no employer may close their institution in any of the following cases:

a- If the dispute was referred to the settlement representative, the settlement council, or the labor court.

b- During the period in which any settlement or any applicable decision is in effect, and the strike or closure relates to the issues covered by that settlement or that decision.

Article 135 Notice of strike and closure (Effective date: 14/06/1996)

a- The worker may not strike without giving notice to the employer before a period not less than fourteen days from the date specified for the strike. This period shall be doubled if the work is related to a public interest service.

b- An employer may not close their institution without giving workers notice thereof not less than fourteen days before the date specified for closure, and this period shall be doubled if the work is related to a public interest service.

c- Other conditions and procedures for strikes and closures shall be determined in accordance with regulations issued for this purpose.

Article 136 Prohibited strikes and closures (Effective date: 14/06/1996)

a- If any worker goes on a strike prohibited under this Law, they shall be punished with a

fine of not less than fifty JDs for the first day and five JDs for each day the strike continues thereafter, and they shall be deprived of their wages for the days on which they strike.

b- If the employer initiates a closure prohibited under this Law, they shall be punished with a fine of five hundred JDs for the first day and fifty JDs for every day that the closure continues thereafter, and they shall be obligated to pay workers' wages for the days that the closure continues.

Article 137 (Effective date: 16/05/2019)

a- The Magistrate Court shall have jurisdiction to hear lawsuits arising from individual labor disputes, including lawsuits related to wages in areas where there is no wages authority in accordance with the provisions of Paragraph (b) of this Article, in an urgent manner, so that the lawsuit shall be decided within three months from the date it is received by the court.

b- In hearing the lawsuits related to wages, including a decrease in the wage paid, illegal deductions, delayed payments, or overtime wages, the Magistrate Court shall follow the below procedures:

1. The worker themselves, or the trade association on their behalf, submits the claim in writing. A unified claim may be submitted by a number of workers if they work in the same institution and they have a common cause for their claim. The employer shall also, within a period not exceeding ten days from the date on which they are notified of the lawsuit documents, submit to the court a detailed answer to the claim statement regarding each of its facts, along with documents and evidence proving their fulfillment of the wages demanded by the worker or their lack of entitlement to them.
2. The court may request the employer, within a period it specifies, to pay the worker the wages deducted illegally, or the wages that are not paid or due for payment, or whose payment is delayed within the period specified for this purpose, and it may add compensation at its discretion, provided that the amount of compensation does not exceed the amount deducted or unpaid for the period for which wages are claimed. This stipulates that the employer shall not be obligated to pay compensation for missing or delayed wages if the court is convinced that the delay was the result of a mistake in good faith, a dispute over the amount to be paid, the occurrence of an emergency, or the worker's failure to demand or accept payment of wages.

c- The court's decision issued pursuant to the provisions of Paragraph (a) of this Article shall be appealed within ten days from the date of its declaration if it was in the presence of the court and from the date of its notification if it was in absentia. The court shall decide on the appeal within thirty days from the date of receiving thereof in its office.

d- 1. Cases submitted to the Magistrate Court shall be exempt from all fees, including fees

for implementing the decisions issued thereby.

2. The provisions of Item (1) of this paragraph shall not apply in the event that the lawsuit is renewed more than once after it has been dropped, or to any other lawsuit filed by the worker to claim the same labor rights.

Article 138 Passage of time preventing hearing of labor claims (Effective date: 14/06/1996)

a- Any lawsuit related to any violation committed inconsistent with the provisions of this Law, or any regulations or instructions issued pursuant thereto, shall not be considered unless the lawsuit is filed within one month from the date on which the violation was committed.

b- Any lawsuit to claim any rights stipulated by this Law, including overtime wages, regardless of their source or origin, shall not be considered after two years have passed since the reason for claiming those rights and wages arose.

Article 139 Violating the provisions of legislation (Effective date: 15/06/2023)

Each violation of the provisions of this Law or any regulation issued pursuant thereto for which no penalty is specified, the perpetrator shall be punished with a fine of not less than (500) JDs and not more than (1,000) JDs. This requires that the penalty stipulated in the applicable Penal Code be imposed on the violator if the penalty prescribed for the violation therein is more severe than what is stipulated in this Law, and the penalties imposed shall be combined if there are multiple violations.

Article 140 Bylaw (Effective date: 14/06/1996)

The Council of Ministers, upon the recommendation of the Minister, may issue the necessary regulations to implement the provisions of this Law.

Article 141 Cancellations (Effective date: 14/06/1996)

(Labor Law) No. (21) of 1960 and the amendments made thereto shall be repealed, provided that the regulations, instructions and decisions issued pursuant thereto that do not violate the provisions of this Law remain in effect for a period not exceeding two years until they are repealed or replaced by others in accordance with the provisions of this Law.

Article 142 Persons charged with implementing the provisions of the Law (Effective date: 14/06/1996)

The Prime Minister and the Ministers are responsible for implementing the provisions of this Law.

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Year: 1996 Number of Articles:1 Effective Date : 16/04/1996	Table No. 1 of 1996 - List of Occupational Diseases Entitling Compensation, Annexed to the Labor Law No. 8 of 1996	Official Gazette Number: Page : 1220 Date : 16/04/1996

Article (1)

S.N	Disease	**Process Description**
1	Anthrax	Infection from handling infected wool, hair, or raw hides, and all activities involving contact with infected animals.
2	Arsenic/ Derivatives Poisoning	Handling arsenic, its preparations, or compounds
3	Asbestos Poisoning	Handling or manufacturing asbestos or materials containing it
4	Benzene/ Derivatives Poisoning	(A) Handling or manufacturing benzene or its derivatives, or performing any process involving its use. (B) Nitrobenzene or Para-Amino Benzene Poisoning: Handling or manufacturing nitrobenzene, aminobenzene, or their derivatives or performing any process involving their use, including Triethylamine, ethylene, etc.
5	Carbon Disulfide/ Derivatives Poisoning	Any process involving the use of carbon disulfide or its preparations.
6	Eye Damage	Blue Water or related conditions in glassworkers.
7	Eye Damage from Blue Water	Results from processes involving exposure to radiation emitted from molten metal, such as molten iron or steel, including re-heating and rolling of metal.
8	Chromium Ulceration or related conditions	Any process involving the use of chromic acid, bichromate, ammonium, potassium, sodium, or their preparations.
9	Caisson Disease	Any process carried out in compressed air.
10	Dermatitis or Skin Inflammation	caused by dust or liquids that irritate the skin (commonly found in industrial environments).
11	Skin Cancer or Ulcers	(A) Handling or using tar, pitch, mineral oils, paraffin, or any products derived from these materials. (B) Corneal ulcers of the eye caused by exposure to tar, pitch, or mineral oils.
12	Fluoride Poisoning	Any process involving the use of fluoride or its preparations

13	Glanders (Animal Disease)	Caring for infected horses or handling the carcass of such animals.
14	Lead/ Compounds Poisoning	Handling lead, its preparations, or compounds.
15	Mercury Poisoning	Handling manganese or materials containing manganese.
16	Manganese Poisoning	Any process involving the use of phosphorus or its preparations.
17	Phosphorus/ Compounds Poisoning	Handling manganese or materials containing manganese.
18	Silicosis (Lung disease caused by inhaling silica dust)	Any process involving the inhalation of silica dioxide.
19	Telegraph Workers' Spasms	Use of telegraphic equipment.
20	Trichloroethylene or Dichloroethylene Poisoning	Any process involving the production or use of these substances.
21	Antimony/Compounds Poisoning	Handling or using antimony or its compounds
22	Sulfur Poisoning	Handling or using sulfur.
23	Nickel Poisoning and its effects	Handling or using nickel or its compounds.
24	Carbon Monoxide Poisoning	Any work requiring exposure to carbon monoxide.
25	Cyanide Poisoning	Handling or using cyanide or its compounds
26	Chlorine or Bromine Poisoning	Handling or using chlorine or bromine or their compounds
27	Radiation-related Diseases	Any work that involves exposure to radium or other radioactive materials or X-rays.
28	Infectious and Epidemic Fevers	Work in hospitals dealing with infectious diseases or epidemics.
29	Barometric Pressure-related Symptoms	Work that involves sudden changes in atmospheric pressure or prolonged exposure to low- or high-pressure conditions.
30	Petroleum/Gasses/Derivatives Poisoning	Any work involving the handling or use of petroleum, its gases, or derivatives in any form—solid, liquid, or gas.
31	Lung Diseases due to Dust Exposure	(A) Silicosis (Exposure to silica dust or materials containing silica exceeding 5%). (B) Asbestosis (Exposure to asbestos dust). (C) Bessinosis (Exposure to cotton dust).

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Year: 1996 Number of Articles:1 Effective Date : 16/04/1996	Table No. 3 of 1996 (Table of Entitlements to Pension under the Labor Law of 1996)	Official Gazette Number: 4113 Page : 1239 Date : 16/04/1996

Article (1)

Table of Pension Entitlements

This table specifies the distribution of pension entitlements among eligible beneficiaries based on their relationship to the deceased, as follows:

Case	Widow(s) or Husband	Children	Parents	Siblings
1. Widow(s) or Husband and more than one child	1/2 (Half)	1/2 (Half)		
2. Widow(s) or Husband, one child, and two parents	1/2 (Half)	1/3 (Third)	1/6 (Sixth) For one or each	
3. Widow(s) or Husband and one child	1/2 (Half)	1/3 (Third)		
4. Widow(s) or Husband, more than one child, and two parents	1/3 (Third)	1/2 (Half)	1/6 (Sixth) For one or each	
5. Widow(s) or Husband without children, and two parents	1/2 (Half)		1/6 (Sixth) for each	
6. More than one child and two parents, without widow(s) or husband		3/4 (Three-quarters)	1/6 (Sixth) for one or both	
7. One child and two parents, without widow(s) or husband		1/2 (Half)	1/6 (Sixth) for each	
8. Two parents, without widow(s), husband, or children			1/3 (Third) For one or each	
9. One sibling, without widow(s), husband, children, or parents				1/6(Sixth)
10. More than one sibling, without widow(s), husband, children, or parents				1/3 (Third) shared equally

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Notes:

1. If a widow remarries or passes away after becoming eligible for the pension, her share transfers to the deceased worker's children who are also eligible for pensions at that time. The redistribution is done equally, provided that the total entitlement does not exceed the maximum percentage stated in Case (6). This provision also applies to an eligible husband upon his death.

2. If the share allocated to parents in Case (4) is less than 1/6 each due to existing income, the remaining portion reverts to the widow.

3. If one parent dies in Case (4), their share reverts to the widow. If the widow is deceased or remarried, the share is distributed to the children, provided the total entitlement does not exceed the maximum percentage stated in Case (6).

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Official Gazette Number: Page : 1220 Date : 16-04-1996	**Table No. 2 of 1996** (Table of Occupational Injuries and the Estimation of Disability Percentages Arising Therefrom, Annexed to the Labor Law of 1996)	Year: 1996 Number of Articles: Effective Date : 16-04-1996

Table of Occupational Injuries and Estimated Disability Percentages

Limbs: Percentage

Upper Limbs (Hand, Forearm, Upper Arm)

Injury	Percentage	
	Right	Left
Loss of Thumb Phalanx	15	8
Loss of One and a Half Phalanges	15	12
Loss of All Phalanges	25	20
Loss of All Phalanges and the Thumb Metacarpal Bone	30	24
Loss of Index Finger	15	12
Loss of Middle Finger	12	10
Loss of Ring Finger	9	7
Loss of Pinky Finger	8	6
Loss of Thumb and Index Finger	45	33
Loss of Index and Middle Fingers	22	18
Loss of Middle and Ring Fingers	18	15
Loss of Pinky and Ring Fingers	22	18
Loss of Middle and Pinky Fingers	45	30
Loss of Thumb, Ring, and Middle Fingers	45	33
Loss of Ring, Middle, and Index Fingers	35	25
Loss of Middle, Ring, and Pinky Fingers	33	27
Loss of Index, Pinky, and Ring Fingers	45	36
Loss of Thumb, Index, and Pinky Fingers	45	36
Loss of Index, Middle, and Pinky Fingers	45	33
Loss of Thumb, Ring, and Pinky Fingers	45	33
Loss of Thumb, Index, Middle, and Ring Fingers	55	45
Loss of All Fingers Except Thumb	55	45
Loss of All Fingers Except Index Finger	55	45
Loss of All Hand Fingers	60	55

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Loss of Entire Hand	65	60
Partial Fusion in the Wrist	5-15	5-15
Complete Fusion in the Wrist	25	18
Forearm Amputation Below the Elbow	70	60
Forearm Amputation from the Elbow	75	2/3 66
Half Upper Arm Amputation	75	2/3 66
Arm Amputation from the Shoulder	80	75
Amputation of Both Arms	100	100
Complete Fusion in the Shoulder	40-50	30-40
Incomplete Fusion in the Shoulder	25-35	20-25
Recurrent Dislocation in the Shoulder	30	35
Loss of Arm Movement Parallel to the Shoulder	25	15
Loss of Arm Movement to 30 Degrees	15	5
Paralysis of the Deltoid Muscle	30	20
Paralysis of the Biceps Muscle	30	25
Non-united Fracture in the Upper Arm	50	40
Elbow Stiffness with Extension to 180 Degrees	50	40
Elbow Stiffness at a 150 Degree Angle	40	35
Elbow Stiffness at a 90 Degree Angle	30	25
Loose Elbow Joint	50	40
Elbow Moving Only Between 90 and 100 Degrees	25	15
Non-united Fracture of the Olecranon	15	5
Fracture in the Forearm with Complete Impairment of Flexion and Extension Movements	50	40
Fracture with Minor Malunion in the Radius Bone, Obstructing the Wrist Joint by a Quarter	12	10
Fracture in the Radius Bone with Severe Malunion and Impairment of the Third of the Wrist	15	12
Complete Fusion of the Wrist with Full Extension and Flexion	25	20

Article (2)

	Percentage	
Body Part	**Right**	**Left**
Lower Limbs (Foot, Leg, Thigh)		
Loss of the Big Toe	8	8
Loss of Big Toe and Next Two Toes	12	12
Loss of All Toes Except the Big Toe	12	12
Loss of All Toes	20	20

Loss of One Phalanx of the Big Toe	2	2
Loss of the Second, Third, Fourth, or Fifth Toe	2	
Loss of Foot, Toes, and Metatarsals	30	30
Lisfranc's Procedure	25	25
Loss of Foot with Chopart's Procedure	35	35
Loss of Foot from the Last Third of the Leg Treated by Amputation	50	50
Loss of Leg from the Knee Joint	65	65
Loss of Lower Limb up to the Last Third of the Thigh	66 2/3	66 2/3
Loss of Lower Limb up to Below the Iliac Joint	75	75
Loss of Lower Limb from the Iliac Joint	80	80
Stiffness of the Iliac Joint in an Appropriate Position	50	50
Femoral Fracture with 6 cm Shortening and Good Joints	30	30
Femoral Fracture with 4 cm Shortening	12	12
Femoral Fracture with 3 cm Shortening	8	8
Knee Fusion to 100°	50	50
Knee Fusion Moving to 120° - 170°	25	20
Knee Fusion Moving to 90° - 180°	15	15
Non-Union of Patella Fracture with Severe Weakness in the Thigh	30	30
Non-Union of Patella Fracture with Weakness in the Thigh	20	20
Deforming Knee Arthritis	25	25
Non-Union Fracture of the Leg	50	50
Double Leg Fracture in (X) Shape	20	20
Foot Joint Fusion at Right Angle (Best Position)	20	20
Foot Joint Fusion at 100° Angle	33 1/3	33 1/3
Heel Fusion with Foot Raised Upwards	50	50
Flat Foot Due to Bone Fracture	15	15
Stiffness of the Big Toe with Loss of Foot Movement	15	15
Fusion of the Toes in a Good Position	15	15
Total Genuflecting Joint Fusion (Genuvalgum)	50	50
Varicose Veins with Ulceration	25	25

Article (3)

Body Part	Percentage Right	Left
Muscles		
1. Loss of Part of a Muscle (One or Several Muscles) with Extensive Adhesion to the Skin or Underlying Tissues	30	30
2. Complete or Partial Rupture of One Muscle		
3. Complete or Partial Rupture of a Tendon with Muscle Atrophy		
A. Atrophy of All Thigh Muscles	20	20

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B. Atrophy of the Anterior Part of the Thigh Muscles	30	30
C. Atrophy of All Leg Muscles	10	10
D. Atrophy of the Anterior Part of the Leg Muscles	40	40
E. Atrophy of Lower Limb Muscles		

Article (4)

Body Part	Percentage Right	Left
Nerves		
Paralysis Due to Injury of the Limbs' Nerves		
Ulnar Nerve Paralysis (Injury at the Elbow Level)	30	25
Ulnar Nerve Paralysis (Injury at the Hand)	20	15
Radial Nerve Paralysis (Injury at the Upper Arm for the Triceps Muscle)	50	40
Paralysis of the Median, Ulnar, and Radial Nerves	75	65
Scapular Nerve Paralysis	10	8
Circular Nerve Paralysis	20	15
Complete Paralysis of Upper Limb Nerves	70	55
Complete Paralysis of Lower Limb Nerves	50	50
Sciatic Nerve Paralysis (Lateral Popliteal)	30	30
Sciatic Nerve Paralysis (Medial Popliteal)	30	30
Sciatic Nerve Paralysis (Lateral Popliteal) with Pain	60	60
Sciatic Nerve Paralysis (Lateral and Medial Popliteal)	40	40
Femoral Nerve Paralysis	50	50
Complete Sciatic Nerve Inflammation	50	50
Common Peroneal Nerve Paralysis	20	20

Article (5)

Body Part	Percentage Right	Left
Blood Vessels		
1. The injury or disease can either be healed by surgical intervention or result in a disability, with the degree depending on the resulting impairment.		
2. Arterial Blockage Injury		
A. Atrophy of the Limb with Joint Stiffness	10%	40%
B. Injury to One of the Nerves (see Nerves section)		
C. Gangrene in the Limbs (see Amputation Cases)		
3. Venous Blockage		
A. Chronic Edema	10%	30%

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B. Blockage in Both Lower Limbs with Chronic Edema Affecting Walking and Standing	20%	50%

Article (6)

Body Part	Percentage Right	Left
Varicose Veins		
The presence of varicose veins does not result in a disability that can be quantified by percentage.		
Complications of Varicose Veins		
A. Ulceration (Wide)	20%	30%
B. Extensive Edema (see venous obstruction)		

Article (7)

Body Part	Percentage Right	Left
Brain		
Loss of Scalp Hair	5%	15%
Bone Loss Including Outer and Inner Plates with a Width Less Than 5 cm^2	5%	20%
Bone Loss of 2 cm^2	2%	8%
Bone Loss of 1.5 × 2 cm^2	8%	10%
Bone Loss of 2 × 3 cm^2	10%	12%
Bone Loss of 4 × 3 cm^2	10%	20%
Bone Loss of 4 × 1.5 cm^2	10%	20%
Bone Loss Larger Than 5 cm^2, Including Both Inner and Outer Bone Plates With Brain Pulsations	20%	40%
Brain Injury with or without Skull Fracture, Accompanied by Headache, Slight Speech Impairment, and Brain Symptoms	5%	20%
Brain Injury as Described Above, but with Some Cognitive Impairment, Possibly Leading to Full Mental Insanity	100%	100%
Multiple Seizures	40%	80%
Occasional or Rare Seizures	20%	30%

Article (8)

Body Part	Percentage Right	Left
Upper Limb Paralysis		
Complete Paralysis of the Right Arm	70%	
Complete Paralysis of the Left Arm	60%	

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Incomplete Paralysis of the Right Arm	20%	50%
Incomplete Paralysis of the Left Arm	15%	30%

Article (9)

Body Part	Percentage Right	Left
Lower Limb Paralysis		
Lower Limb Paralysis with Ability to Walk	20%	40%
General Hemiplegia with Muscle Spasticity	70%	100%
Incomplete Hemiplegia or without Muscle Spasticity	10%	60%
Incomplete Right Hemiplegia	18%	60%
Incomplete Left Hemiplegia	8%	40%
Aphasia		
Clear Aphasia	60%	80%
Aphasia with Incomplete Hemiplegia	100%	100%
Mild Aphasia	10%	30%
Brain Hemorrhage		
Brain Hemorrhage with Incomplete Hemiplegia (Incurable)	100%	100%
Concussion		
Concussion with Dizziness	40%	60%
Brain Abscess		
Brain Abscess with Severe Headache and Seizures	30%	60%
Head Trauma		
Head Trauma with or without Skull Fracture, Dizziness, Tinnitus, Headache, and Mental Function Changes	20%	60%
Acute Mental Illness	10%	100%
Chronic Mental Illness	10%	80%

Article (10)

Body Part	Percentage Right	Left
Mental Illness Following Concussion or Brain Injury		
Requires treatment in a psychiatric hospital	100%	
Does not require treatment or supervision	80%	
Condition with symptoms of melancholia or dementia	10%	
Emotional Tremors	20%	30%
Tremors Resulting from Brain Concussion	20%	50%
Spasmodic Neck Tilt	20%	40%

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Article (11)

Body Part	Percentage Right	Left
The Eyes		
Weakness in vision up to one-third	0%	10%
1. Loss of vision that is incurable: This includes the absence or atrophy of the eyeballs, corneal opacity caused by healing effects, complete atrophy of the optic nerve, damage from healing effects in the posterior retina nerve, and retinal detachment. **90%** Considered practically as blindness when central vision does not exceed half a meter, meaning being able to distinguish fingers at half a meter, and the field of vision is less than half a meter or absent on the other side.		
2. Loss of vision in one eye with the other eye remaining intact: The cases of vision loss without visible damage and cases of distortion (such as enucleation or atrophy of the eyeball) are distinguished.		
A. Loss of vision without visible distortion	25%	
B. Enucleation or atrophy of the eyeball with visible distortion (does not prevent placement of a prosthetic eye)	30%	
C. Enucleation of the eyeball with healing effects that prevent the placement of a prosthetic eye	40%	
3. Central vision – Reduced or loss of visual field in both eyes:		
1. Narrowing of the visual field to 30 degrees:		
A. In one eye	0%	
B. In both eyes	20%	
2. Narrowing of the visual field to less than 10 degrees	10%	
A. In one eye	10%	
B. In both eyes	70% - 80%	
3. Scotoma (Central Blind Spot) based on its size:		
A. In one eye	15% - 20%	
B. In both eyes	70% - 100%	
4. Loss of symmetrical visual fields (Hemianopia) with central vision preserved:		
A. Loss of visual field in the head:		
1. Half of the symmetrical visual field in both eyes (right and left)	25%	
2. Loss of the nasal visual field	10%	
3. Loss of the temporal visual field	40%	
B. Loss of horizontal visual field:		
Upper field	40%	

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Lower field	50%
For the quarter	10%
C. Double vision (Diplopia)	25%
Other Eye Injuries	
1. Paralysis of accommodation and paralysis of the iris sphincter:	
A. Internal accommodation paralysis in one eye	5% - 10%
B. Internal accommodation paralysis in both eyes	10% - 20%
2. Traumatic cataract:	
When the vision is less than normal, causing failure to merge the images, it increases by 10%	
So that the degree of disability does not exceed 25%, like the disability caused by the loss of vision in one eye. For example:	
A. Right eye vision 6/6 and left eye vision after surgery 6/6 to 12/6 with 10 diopters of astigmatism causes disability.	
B. Left eye vision 10% and left eye vision after surgery 6/60 or less causes disability.	
The removal of the lens, eye bleeding, or retinal detachment is subject to changes and developments, and the disability is estimated based on the degree of vision.	
Loss of the lens in one eye: 10% - 20%	
Loss of both lenses: 20% - 40%	
Orbital Bone	
A. Damage to the orbital bone and its contents (eyeball, surrounding sinuses, and nasal cavity) with irreversible deformation or inability to place a prosthetic eye.	
B. The motor nerves	50% - 70%
Paralysis of one or more muscles causing double vision	25%
C. Sensory nerves:	
Inflammation at the nerve ends with facial muscle weakness or spasm with pain	15% - 20%
D. Paralysis of the trigeminal nerve (fifth nerve)	10% - 30%
E. Vascular changes – aneurysms and tumors	20% - 60%
Eyelid Injuries	
1. Deviation of the eyelid margin (inward or outward), or the hair or poor healing effects or adhesion of the conjunctiva to the eyeball, whether partial or complete, depending on its extent	0% - 10%
2. Inability to close the eyelids due to facial nerve paralysis:	
A. One eye, depending on complications	10% - 20%
B. Both eyes, depending on complications and tear ducts	30% - 50%
Increased tearing	
Nasolacrimal fistula with extensive bone injury from one side	30%
From both sides	40%

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Article (12)

Body Part	Percentage Right	Left
The Nose		
Deformities		
Fracture of the nasal bone with narrowing of the nostrils	15%	
Loss of the nose without narrowing of the nostrils	20% - 40%	
Loss of the nasal cartilage	10%	
Partial loss of the nose without narrowing of the nostrils	10% - 20%	
Loss of the nose accompanied by narrowing of the nostrils	20% - 50%	
Narrowing of the nose without loss		
1. If the narrowing is not treated, the degree of disability ranges between	5% - 25%	
2. Complete paralysis of the olfactory nerve without visible injuries at the top of the nasal cavity	5%	

Article (13)

Body Part	Percentage Right	Left
The Ears		
Outer Ear		
Loss or deformity of the auricle without injury to the ear canal	5%	
One ear	5%	
Both ears	10%	
Loss of the auricle with narrowing of the ear canal: The degree of disability mentioned above is increased due to hearing impairment or complete loss of hearing		
Middle Ear		
Incomplete deafness: On one side	5% - 10%	
On both sides	15% - 40%	
Complete deafness: On one side	30%	
On both sides	60%	
Complete deafness on one side and incomplete on the other	30% - 50%	
Osteomyelitis		
Purulent osteomyelitis in the temporal bone accompanied by a fistula: If not healed by surgical intervention, the degree of disability is determined based on the degree of osteomyelitis		
Chronic osteomyelitis in the temporal bone	30% - 50%	
Severe, continuous dizziness	10% - 30%	

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Deafness in one ear	15%
Deafness in both ears	30%

Article (14)

Body Part	Percentage Right	Left
Teeth		
Loss of up to three teeth	0% - 5%	
Loss of half the teeth with the possibility of fitting dentures	10%	
Loss of half the teeth with no possibility of fitting dentures	25%	
Loss of all teeth with the possibility of fitting dentures	15%	
Loss of all teeth with no possibility of fitting dentures	40% - 50%	

Article (15)

Body Part	Percentage Right	Left
Face		
Facial Deformities		
Injury to the upper jaw and nasal deformity (depending on soft tissue condition)	80% - 90%	
Injury to the upper jaw with facial deformity	90%	
Injury to the entire lower jaw or when no part remains	60% - 80%	
Assistance branch with facial deformity		

Article (16)

Body Part	Percentage Right	Left
Upper Jaw		
Mastication (Chewing)		
Inability to chew	40% - 50%	
Chewing possible but limited	10% - 20%	
Loss of the roof of the mouth	10% - 30%	
Loss of the roof of the mouth with improvement from surgical treatment	0% - 10%	
Loss of the roof of the mouth connected to the nasal cavity with facial deformity	30% - 50%	
Loss of the roof of the mouth connected to the nasal cavity with improvement from treatment	10% - 40%	
Loss of the roof of the mouth connected to the nasal cavity and maxillary sinus	30% - 40%	

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Article (17)

Body Part	Percentage Right	Left
Lower Jaw		
Mastication (Chewing)		
Inability to chew or insufficient chewing	40% - 60%	
Limited chewing ability	5% - 10%	
Dislocation of the temporomandibular joint (TMJ) that cannot be reduced	20% - 30%	
Dislocation of the temporomandibular joint with improvement from treatment	0% - 10%	
Mouth narrowing due to jaw ankylosis	20%	
Mouth narrowing due to jaw ankylosis, where only liquids can be consumed	25%	

Article (18)

Body Part	Percentage Right	Left
Tongue		
Partial Tongue Amputation		
Tongue amputation based on its extent, adhesions, and speech condition	10% - 40%	
Salivary fistula that did not improve with surgical treatment	10% - 40%	

Article (19)

Body Part	Percentage Right	Left
Spine		
Head and trunk deviation	20% - 50%	
Scoliosis, lordosis, or kyphosis with restricted movements	30% - 50%	
Localized protrusion or depression with pain and limited movement	10% - 30%	
Paralysis of both lower limbs	100%	
Incomplete paralysis of both lower limbs, walking not possible	70%	
Incomplete paralysis of both lower limbs, walking possible with crutches or a cane	30% - 50%	
Degenerative joint disease with deformity	30% - 40%	
Degenerative joint disease with deformity and stiffness	40% - 80%	
Spinal joints and difficulty breathing		
Osteomyelitis in the vertebrae with spinal cord intact	30% - 60%	
Pott’s disease without tuberculous abscess	30% - 50%	

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Pott's disease with tuberculous abscess	50% - 70%
Spinal cord cyst	50% - 70%
Progressive muscle atrophy	10% - 80%
Disseminated central nervous system fibrosis	60% - 70%

Article (20)

Body Part	Percentage Right	Left
Pelvis		
Pain with difficulty in walking and movement	10% - 20%	
Shortened lower limb with axis deviation	20% - 40%	

Article (21)

Body Part	Percentage Right	Left
Neck		
Neck flexion forward due to muscle strain or fused healing	10% - 20%	
Neck flexion to the chin reaching the upper sternum bone	40% - 60%	

Article (22)

Body Part	Percentage Right	Left
Larynx		
Laryngeal Stenosis		
Hoarseness of voice	5% - 20%	
Difficulty breathing after exertion	10%	
Difficulty breathing without exertion	30%	
Difficulty breathing requiring tracheal tube	40%	
Hoarseness with breathing difficulty	16% - 60%	
Tuberculosis of the larynx	20%	
Loss of voice with limited vocal cord damage	50%	
Difficulty swallowing with or without voice loss	9%	
Breathing difficulty and laryngeal opening	100%	

Article (23)

Body Part	Percentage Right	Left
Throat		
Lower Throat and Pharynx Stenosis		
Narrow throat preventing swallowing	10% - 30%	
Narrow pharynx	20% - 50%	

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Pharyngeal fistula with stenosis, not treatable by surgery	10% - 30%
Upper Throat Stenosis or Obstruction	
Pharyngeal isthmus caused by adhesion of the roof of the mouth to the back wall	15% - 40%
Pharyngeal isthmus with deafness	60%

Article (24)

Body Part	Percentage	
	Right	Left
Chest Cage		
Bone fracture not accompanied by rough injury	10%	20%
Rib fracture	0%	20%
Lungs		
Pulmonary Tuberculosis		
Pulmonary tuberculosis caused by occupational infection or injury:		
Mild cases	10%	20%
Moderate cases	30%	70%
Advanced cases	70%	90%
Chronic Bronchitis		
Chronic bronchitis with emphysema, heart failure, and asthma	90%	
Simple chronic bronchitis	5%	20%
Simple pleural effusion	5%	30%
Bloody pleural effusion	5%	20%
Purulent pleural effusion	10%	50%
Heart & Aorta		
Adhesion to the pericardium, valve injury, or myocarditis:		
With a healthy heart	10%	15%
With visible symptoms	20%	60%
With heart failure	80%	
Effects on the heart and kidneys due to infection or poisoning	30%	90%
Aortic aneurysm	40%	80%
Abdomen		
Stomach		
Chronic ulcer	30%	50%
Chronic ulcer with pyloric stenosis, stomach dilation, and dryness	50%	80%
Chronic ulcer with painful adhesions	10%	40%
Chronic ulcer with untreated gastric fistula	50%	90%
Chronic ulcer with untreated duodenal fistula	20%	30%
Narrow fistula with a chronic ulcer	40%	70%
Fistula in the intestines - upper abdominal area	70%	90%

Fistula in the intestines not healed by surgical treatment:	
Narrow fistula	20% - 30%
Fistula allowing the discharge of fecal matter with normal defecation	30% - 40%
Colostomy / all intestinal contents are discharged, no defecation	80% - 90%
Anal fistula, depending on location (internal/external sphincter)	10% - 40%
Due to injury or absence of the anal sphincter	20% - 70%
With inflammatory bowel disease	20% - 70%
With temporary dysentery	20% - 50%
With tuberculous peritonitis	30% - 70%
Hernia	
Inguinal hernia	10% - 20%
Femoral hernia	10% - 30%
Double hernia	20% - 30%
Umbilical hernia	10% - 20%
Abdominal Wall	
Healing with hernia	10% - 30%
Healing with limited hernia	10% - 20%
Healing with surgical hernia	30% - 60%
Hernia or evisceration without healing	10% - 40%
Surgical hernia	10% - 20%
Surgical abdominal hernia with or without partial paralysis of abdominal muscles	20%
Liver	
Gallbladder or suppurative fistula due to injury or surgery	20% - 60%
Spleen	
Splenectomy	20% - 50%
Urinary System	
Kidney infection (one kidney)	10% - 30%
Kidney infection with pelvic inflammation	40% - 50%
Kidney infection due to infection or poisoning	50% - 80%
Pelvic kidney infection	50% - 80%
Nephrectomy (kidney removal)	50%
Nephrectomy with surgical hernia	60% - 70%
Abdominal urinary fistula	40% - 60%
Ureteral fistula	50%
Mobile kidney	5% - 10%
Tuberculosis in one kidney	50%
Tuberculosis in both kidneys	60% - 80%
Tuberculosis in the bladder with healthy kidneys	20% - 30%
Bladder	

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Adhesion of the bladder wall to the pubic symphysis due to fracture	40% - 50%
Fistula below the pubic area	50%
Urinary fistula	50%
Bladder-intestinal fistula	70%
Bladder-rectal fistula	50% - 90%
Chronic cystitis due to injury or catheter insertion	30% - 40%
Recurrent cystitis or bladder injury requiring catheter fixation	50%
Cystitis with inflammation of one kidney's pelvis	50%
Cystitis with inflammation of both kidney's pelvis	70% - 90%
Total urinary retention due to spinal cord injury	40%
Partial urinary retention	20%
Partial urinary retention with kidney infection	50% - 90%
Inability to retain urine	20% - 30%
Urethra (Posterior)	
Complete stricture due to rupture of posterior urethra	95%
Partial stricture due to rupture	60%
Stricture that can be expanded surgically	20% - 40%
Stricture with fistula between anus and urethra	60% - 80%
Stricture with loss of anal sphincter muscle	80% - 90%
Urethra (Anterior)	
Stricture that can be expanded	20% - 30%
Stricture difficult to expand	30% - 40%
Urinary fistula	30%
Complete absence of anterior urethra with perineal opening	70%
Absence of anterior urethra with opening between the navel and pubis	40%
Reproductive Organs	
Loss of penis	60%
Loss of penis with urethral opening narrowing	70%
Partial loss of the corpus spongiosum	30%
Healing effect on the penis does not prevent erection	0%
Loss of penile tip	25%
Loss of penis with anterior and posterior urethra with testes	90%
Loss of one testicle with hormonal deficiencies	10%
Loss of testicle before puberty	33%
Loss of testicle up to age 40	20%
Loss of testicle between 40-60 years old	10%
Loss of both testicles in adolescents	60%
Loss of both testicles in adults	35%
Loss of both testicles after age 60	10%

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Hydrocele based on size and complications	10%	
Traumatic hematoceles	10% - 15%	
Tuberculosis of epididymis and one testicle	10% - 15%	
Tuberculosis of epididymis and both testicles	20% - 40%	
Tuberculosis of the epididymis with prostate and seminal vesicle involvement	40% - 50%	
Uterus loss	30%	
Change in uterine position	20%	
Prolapse of the uterus or vagina (mild case)	0% - 5%	
Healing Effects		
Healing effect on upper limb mobility:		
Arm attached to the body	25% - 30%	30% - 40%
Flexion from 10 to 45 degrees	25% - 15%	20% - 30%
Flexion from 45 to 90 degrees	15%	20%
Flexion to 90 degrees but inability to lift the arm	8%	10%
Elbow Healing Effect (Restricted Extension)		
At 135-degree angle	8%	10%
At 90-degree angle	15%	
At 45-degree angle	35%	40%
Less than 45-degree angle, forearm in a single flexed position	40%	50%
Knee Healing Effect (Restricted Extension)		
From 135 to 170 degrees	10%	30%
From 90 to 135 degrees	30%	50%
From 90 degrees or less	60%	50%
Effect of foot healing causing edge deviation	10% - 40%	
Painful and ulcerated healing effect	5% - 25%	
Chronic Osteomyelitis		
Single or multiple recurrent fistulas	20% - 40%	
Tuberculous Osteomyelitis		
Osteomyelitis with fistula	20% - 40%	
Tumors		
Thyroid Glands		
Suppurative thyroid glands causing slight pain	0% - 20%	
Suppurative thyroid glands with fistulas	20% - 40%	
Malignant Tumors		
Disability estimated based on the surgery or post-surgical recurrence or failure to operate	40% - 90%	
Syphilis		
Syphilis as an occupational disease	50%	

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General Principles: When estimating the percentage of disability arising from injuries, this estimate varies based on several factors:

1. Age of the injured person.
2. Occupation or trade.
3. Previous medical conditions in the affected body part.
4. The disabilities accompanied by disfigurement, as noted in the decision issued, this percentage applies only to the disability without disfigurement.

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